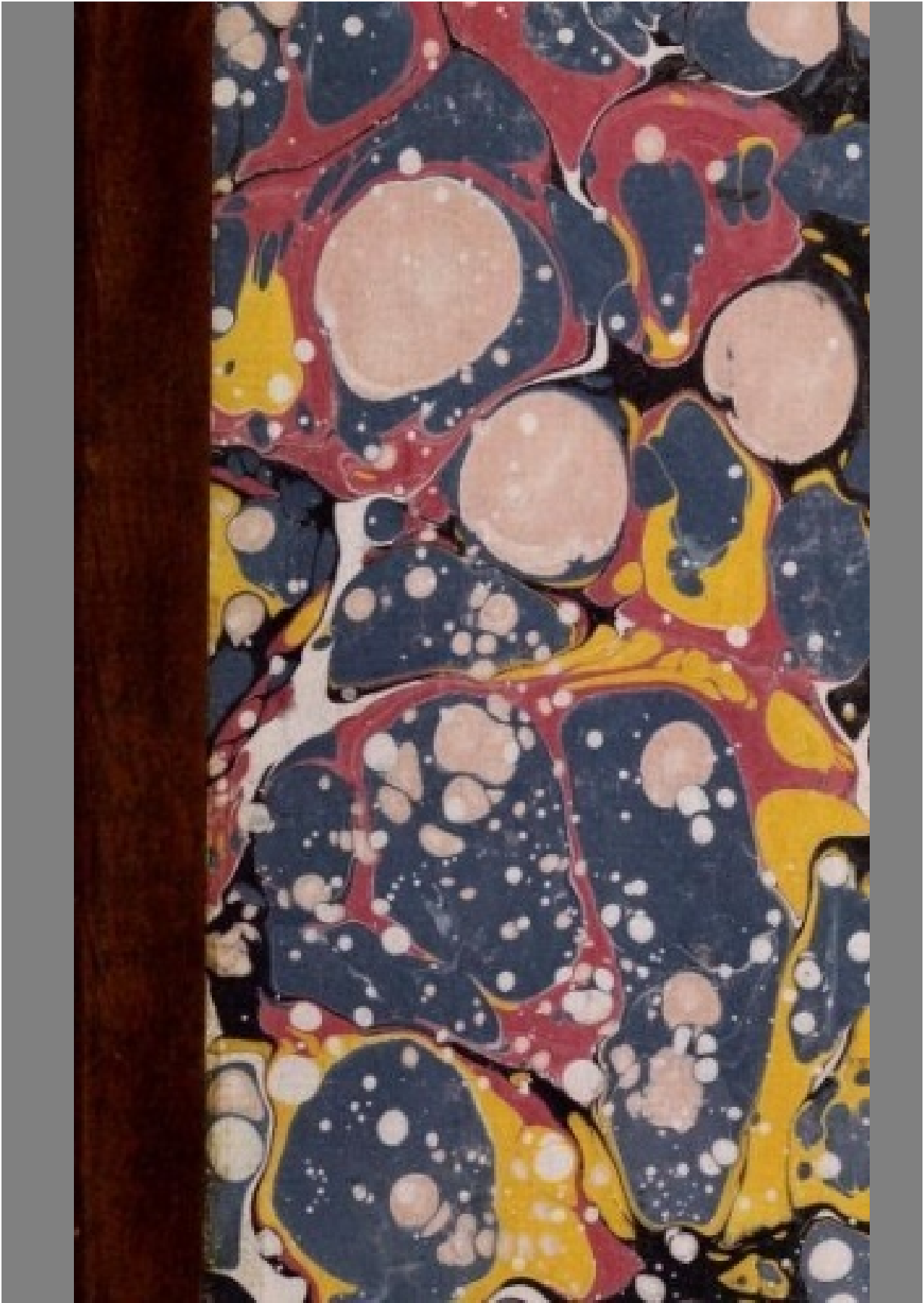






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GEOGRAPHICAL AND HISTORICAL, RELATING TO THE TOWN OF
BROOKLYN IN KINGS COUNTY ON LONG-ISLAND ***



ON THE EAST RIVER.

NOTES

GEOGRAPHICAL AND HISTORICAL,

RELATING TO THE

Town of Brooklyn,

IN

KINGS COUNTY

ON

LONG-ISLAND.



BY GABRIEL FURMAN.



“They are worthy of reprehension who condemn the study of antiquity, (which is ever accompanied with dignity) as an arid curiosity.”

LORD COKE.



BROOKLYN:

PRINTED BY A. SPOONER, NO. 50 FULTON-STREET.



1824.

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ADVERTISEMENT.



THE Compiler offers these notes to the inhabitants of his native town, in the hope that they may be in some small degree useful and entertaining in discussions relating to the history and rights of this thriving place. He claims no merit for this performance, and neither does he write from the vanity of being considered an author, but is only actuated by a desire to rescue from oblivion such facts as may be interesting to his fellow-citizens. The Compiler would consider himself guilty of ingratitude, if he did not in this public manner, acknowledge the obligations he rests under from the kind assistance afforded him whilst collecting these notices, by Jeremiah Johnson, Abraham Vanderveer, Silas Wood, and John Doughty, Esqrs.

NOTES &c. OF THE TOWN OF BROOKLYN.



SITUATION.

This town is situated in Kings County, on the west end of Long-Island, in the State of New-York. It is bounded north by the City and County of New-York; east by the township of Bushwick; south by the township of Flatbush and New Utrecht; and west by New-York Bay; and contains the village of Brooklyn, which is about a mile square. This town formerly composed part of a powerful Indian Sachemdom; and with the other parts of the Island bore the Indian name of Matowcas.

This part of the Island, as far as Jamaica was inhabited by the Canarsee tribe of Indians. The old Dutch inhabitants in this county have a tradition, that the Canarsee Indians were subject to the Mohawks, as all the Iroquois were called; and paid them an annual tribute of dried clams and wampum. When the Dutch settled here, they persuaded the Canarsees to keep back the tribute; in consequence of which a party of the Mohawks came down and killed their tributaries wherever they met them. So great was the dread that these Indians afterwards entertained of the Iroquois, that when a party of the Iroquois, during the French war were taken prisoners and imprisoned in the Jail of this county, the Canarsees avoided them with the greatest care; and seemed to be afraid even to come where they should see them. The Canarsee Indians are at this time totally extinct: not a single member of that ill fated race is now in existence.

There was also a small tribe of the Nyack Indians near the Narrows.

In this town is also the United States Navy-Yard, containing about 40 acres; which was purchased of John Jackson, Esq. by Francis Childs, Esq. for \$40,000, and on the 23d day of February, 1801, was conveyed by said Childs to the United States.

ANCIENT NAMES AND REMAINS.

In 1667, this town was known by the name of Breucklen. In the act to divide the province of New-York into shires and counties, passed Nov. 1, 1683, it is mentioned by the name of Breucklyn. It is also called Broucklyn in the act to divide the province into shires and counties, passed, Oct. 1, 1691. The present name Brooklyn, does not appear to have been generally adopted until after the Revolutionary war.

Heads of Indian arrows, beds of oyster and clam shells denoting the former residence of the aborigines, are frequently found in different parts of this town.

Among the most ancient remains are two houses, one owned by the family of Cortelyou, built in 1699; the other standing on Fulton-street, in the village of Brooklyn. The last mentioned house was occupied by the Colonial Legislature as a Sessions house, during the prevalence of the small-pox in New-York, in 1752; and at this house on the 4th of June, 1752, 2541 Bills of credit issued by this Colony, amounting to £3602, 18, 3, were cancelled by the Colonial Commissioners. This house was also occupied by Gen. Putnam as his head quarters during the stay of the American Army, on Long-Island, in 1776. But the oldest house in the town of Brooklyn is supposed to be the house known as No. 64 Fulton-street, in the village of Brooklyn, and now owned and occupied by Mr. Jacob Patchen. Mr. Charles Doughty, who has been dead about 25 years, and was about 85 years of age when he died, said that this was an old house when he was a boy. Mrs. Rapalye, the mother of John Rapalye, whose property in Brooklyn was confiscated during the Revolutionary war, says that this house was built by a family of the Remsens who came from Holland.

SOIL AND CLIMATE.

The soil of this town appears to be mostly alluvial, though some few primitive rocks are to be met with. Several years since, in digging a well on some of the highest ground in Brooklyn, a hemlock board was found at the depth of 30 feet, and again at the depth of 73 feet, oyster and clam shells were met with, which crumbled on being exposed to the air.

The shores of Brooklyn, where they are not defended by wharves, are undergoing continual and rapid changes, in consequence of the velocity of the current in the East River. The tide rises here about 5 feet.

There is very little doubt, but that Governor's Island was formerly connected with Red Hook point in this town. It is an established fact, that previous to the Revolutionary contest, cattle were driven from Red Hook to Governor's Island, which places at that time were only separated by a very narrow channel, which is called Buttermilk channel, and is now wide and deep enough to admit of the largest size of merchant vessels passing through.

The climate is very changeable, but cannot be called unhealthy. People in this town live to as great age, as in almost any other part of the United States; as instances of which, April, 1823, Mr. Tiebout died in this town, aged 100 years and 10 months. The same year, Mr. Schoonmaker died, aged 84 years; and in 1824, Mary Peterson, a colored woman died, aged 103 years. It is not an uncommon thing for the inhabitants to live beyond the "three score years and ten."

This town has at different periods been visited by the yellow fever. Between July 10th and September 10th, 1809, 28 persons died of that disease.—During the prevalence of the yellow fever in the city of New-York, in the summer of 1822, seven persons died of that disease in Brooklyn. In the summer of 1823, the yellow fever made its appearance in the village of Brooklyn, and nine persons fell victims to that dreadful pestilence, in the space of one month, during which time its ravages continued. Every year that this disease made its appearance amongst us, it could be distinctly traced to some foreign cause; as, in 1809, it was brought in the ship Concordia, Captain Coffin, on board of which vessel the first case and death happened. In 1822, it was introduced from the city of New-

York—and in 1823, it was traced to two or three vessels which had arrived a short time previous from southern latitudes. Indeed the high and airy situation of Brooklyn almost precludes the idea of its being engendered among us.

ANCIENT GRANTS AND PATENTS.

In the year 1638, William Kieft, Director General and Counsellor for their high mightinesses the States General, and his highness the Prince of Orange, granted to Abraham Rycken, a tract of land in the present town of Brooklyn.

September 11, 1642, William Kieft Director General, &c. patented to Jan Manje, a piece or parcel of land containing 20 morgan, or 40 acres, in the town of Brooklyn. A copy of which patent is hereto annexed as a specimen of those ancient instruments:

“By William Kieft, Director General and Counsellor, about the high and mighty Lords, the States General of the United Low Country, and his highness of Orange, and the Lords Commanders of the priviledged West India Company, residing in the New-Netherland, do ratify and declare by these presents, that we upon the date hereinafter written, did give and grant to Jan Manje, a piece of land, greatly twenty morgan stretching about south-east one hundred and ninety rods inward the woods towards to Sassians maise land—long is the limits of the said maise land fifty rod, and then again to the water side, two hundred and twenty rod, about north north-west, well so northerly and along the strand or water side, seventy rod. Which abovesaid land is lying upon Long-Island, between Andries Hudde and Claes Janse Ruyter.—With express conditions, &c. Dated at Fort Amsterdam, in the New-Netherland, the 11th day of September, 1642.

WILLIAM KIEFT.

By order of the Lord the Director General, and Counsellor of New-Netherland.

CORNELIUS VANTIENHOVEN, Sec'ry.

January 29, 1652, Pieter Linde, having married the widow of Jan Manje, transported or sold the above tract of land to Barent Janse. August 23, 1674, before Nicasius de Sille, admitted Secretary of the Dutch towns appeared Jan Barentse,^[1] and Auke Janse, with Simon Hausen as Guardian of the other children of Barent Janse, deceased, “procured by his wife Styntie Pieterse deceased, all living within the town of Midwout Fflackbush,” and

declared that they transported the above tract of land to Dirck Janse Woertman.

September 12, 1645, William Kieft, Director General, &c. patented to Andries Hudden, “a piece of land lying upon Long-Island against over the fort, lying to the south-west to Jan Manje,” containing 37 morgan. December 10, 1651, “Pieter Cornelissen by virtue of a procuratie of Andries Hudden,” for the consideration of 400 guilders, transported to Lodewyck Jongh the above tract. July 19, 1676, Lodewyck Jongh transported to Jeronimus de Rapalje, eight morgan of the above tract. February 12, 1679, Harmatie Jansen relict of Lodewyck Jongh, transported to Dirck Janse Woertman, 12 morgan of the above tract. May 3, 1685, “Dirck Janse Woertman, transported to the heirs of Jooris Dirckse, a small stroke off land lying at the east side off the highway being all the claime they can pretende by virtue off the abovesaid Pattent.”

September 30, 1645, William Kieft, Director General, &c. patented to Claes Janse, from Naerder, a piece of land, containing 20 morgan, lying south-east, a little easterly, just over against the Fort, upon Long-Island. March 11, 1660, the above tract of land was transported by Claes Janse Ruyter, to Machiell Tadens, who transported the same to Machiell Hainielle.

The three patents to Manje, Hudde, and Janse, from Naerder, were located near the Ferry in this town, and all subsequently were purchased by Derick Woortman, alias Dirck Janse Woertman, and were by him sold to Joras Remsen, on the 10th day of October, 1706, for the sum of £612 10s. current money of New-York.

There is great reason to believe that there was a General Patent of this town under the Dutch Government, which patent is now lost. What strengthens this idea is, that the first by Governor Nicolls under the English is confirmatory of some former grant.

August 10th, 1695. The Patentees and freeholders of this town sold unto Stephanus Van Cortlandt, the neck of land called Red Hook, containing by estimation 50 acres; which they state in their deed “was formerly given and granted to the town of Broocklyn, in the year 1657, by Governor Stuyvesant, the Dutch Governor then at that time, and since confirmed by the English Governors, Governor Nicolls, and Governor Dongan.” Which is very strong proof of there having been a general Dutch Patent for this town.

October 18, 1667. Richard Nicolls, the first English Governor of New-York, granted to the inhabitants of Brooklyn, the following full and ample patent, confirming them in their rights and privileges.

L. S. “Richard Nicolls, Esq. Governor General under his Royal Highness James Duke of Yorke and Albany, &c. of all his Terretorys in America, To all to whom these presents shall come, sendeth Greeting.—Whereas there is a certain town within this government, situate, lying and being in the West Riding of Yorkshire upon Long-Island, commonly called and known by the name of Breuckelen, which said town, is in the tenure or occupation of several freeholders and inhabitants who having heretofore been seated there by authority, have been at very considerable charge, in manuring and planting a considerable part of the lands belonging thereunto and settled a competent number of families thereupon. Now for a confirmation unto the said freeholders and inhabitants in their possessions and enjoyment of the premises, Know ye, That by virtue of the commission and authority unto me given by his Royal Highness, I have given, ratified, confirmed and granted, and by these presents, do give, ratify, confirm and grant, unto Jan Everts, Jan Damen, Albert Cornelissen, Paulus Veerbeek, Michael Eney, Thomas Lamberts, Tuenis Guysbert Bogart and Joris Jacobson, as patentees, for and on the behalf of themselves and their associates, the freeholders and inhabitants of the said town their heirs successors and assigns, all that tract together with the several parcels of land which already have or hereafter shall be purchased or procured for and on behalf of the said town, whether from the native Indian proprietors, or others, within the bounds and limits hereafter set forth and exprest, viz. that is to say, the town is bounded westward on the farther side of the land of Mr. Paulus Veerbeek, from whence stretching south-east, they go over the hills, and so eastward along the said hills to a south-east point which takes in all the lotts behind the swamp, from which said lotts the run north-west to the River^[2] and extend to the farm, on the t’other side of the hill heretofore belonging to Hans Hansen over against the Kicke or Looke-out, including within the said bounds and limitts all the lotts and plantations, lying and being at the Gowanis, Bedford, Wallaboucht and the ferry.—All which said parcels and tracks of land and premises within the bounds and limitts aforementioned, described, and all or any plantation or plantations thereupon, from henceforth are to bee appertaine and belong to the said town of Breucklen, Together with all havens, harbours, creeks, quarryes, woodland, meadow-

ground, reed-land or valley of all sorts, pastures, marshes, runs, rivers, lakes, hunting, fishing, hawking, and fowling, and all other profits, commodities, emoluments, and hereditaments, to the said lands and premises within the bounds and limits all forth belonging, or in any wise appertaining,—and withall to have freedome of commonage for range and feed of cattle and horse into the woods as well without as within these bounds and limitts with the rest of their neighbours^[3]—as also one-third part of a certain neck of meadow ground or valley called Sellers neck, lying and being within the limits of the town of Jamaica, purchased by the said town of Jamaica from the Indians, and sold by them unto the inhabitants of Breucklen aforesaid, as it has been lately laid out and divided by their mutual consent and my order, whereunto and from which they are likewise to have free egress and regress, as their occasions may require.^[4] To have and to hold all and singular the said tract and parcell of land, meadow ground or valley, commonage, hereditaments and premises, with their, and every of their appurtenances, and of every part and parcell thereof to the said patentees and their associates, their heirs, successors and assigns, to the proper use and behoof of the said patentees and their associates, their heirs, successors and assigns forever. Moreover, I do hereby give, ratify, confirm and grant unto the said Patentees and their associates, their heirs, successors and assigns, all the rights and privileges belonging to a town within this government, and that the place of their present habitation shall continue and retain the name of Breuckelen, by which name and stile it shall be distinguished and known in all bargains and sales made by them the said Patentees and their associates, their heirs, successors and assigns, rendering and paying such duties and acknowledgments as now are, or hereafter shall be constituted and established by the laws of this government under the obedience of his Royal highness, his heirs and successors. Given under my hand and seal at Fort James, in New-York, on the Island of Manhattat, this 18th day of October, in the nineteenth year of the reign of our Sovereign Lord, Charles the second, by the grace of God, of England, Scotland, France and Ireland, King, Defender of the faith, &c. Annoque Domini, 1667.

RICHARD NICOLLS.

Recorded by order of the Governor, the day and year above written.

MATTHIAS NICOLLS, Sec'ry.

1670. The inhabitants of this town desirous of enlarging the bounds of their common lands, and extinguishing the Indian claim to the same, applied to Governor Lovelace, and obtained from him the following permission to purchase of the Indians.

“L. S. Whereas the inhabitants of Breucklyn, in the west Riding of Yorkshire upon Long-Island, who were seated there in a township by the authority then in being, and having bin at considerable charges in clearing ffencing and manuring their land, as well as building ffor their conveniency, have requested my lycense for their further security to make purchase of the said land of some Indians who lay claim and interest therein; These are to certify all whom it may concerne, that I have and doe hereby give the said inhabitants lycense to purchase their land according to their request, the said Indians concerned appearing before me as in the law is required, and making their acknowledgments to be fully satisfied and payed for the same. Given under my hand and seal at ffort James, in New-Yorke, this ffirst day of May, in the 22nd yeare of his Majestyes reigne, Annoque Dom. 1670.

FFRANCIS LOVELACE.”

The purchase was accordingly made and the following is a copy of the deed from the Indians for the same.

“To all people to whom this present writing shall come, Peter, Elmohar, Job, Makaquiquos, and Shameese, late of Staten-Island send Greeting: Whereas, they the said Peter, Elmohar, Job, Makaquiquos, and Shameese, afore-mentioned, doe lay claime to the land now in the tenure and occupation of some of the inhabitants of Breucklyn, as well as other lands there adjascent as the true Indian owners and proprietors thereof, Know Yee, that for and in consideration of a certaine sum of wampum and diverse other goods, the which in the Schedule annext are exprest unto the said Sachems in hand payd by Monsieur Machiell Hainelle, Thomas Lambertse, John Lewis, and Peter Darmantier, on the behalf of themselves and the inhabitants of Breucklyn, the receipt whereof they doe hereby acknowledge, and themselves to be fully satisfyed and payed therefore; have given, granted, bargained and sold, and by these presents doe fully, freely and absolutely give, grant, bargain and sell, unto the said Monsieur Machiell Hainelle, Thomas Lambertse, John Lewis and Peter Darmantier, ffor and on behalf of themselves, and the inhabitants aforesaid, their heys and successors; all that parcell of land and tract of land, in and about Bedford,

within the jurisdiction of Brucklyn, beginning ffrom Hendrick Van Aarnhems land by a swamp of water and stretching to the hills, then going along the hills to the port or entrance thereof,^[5] and soe to Rockaway ffoot path as their purchase is more particularly sett fforth; To have and to hold all the said parcell and tract of land and premises within the limits before described unto the said Monsieur Machiell Hainelle, Thomas Lambertse, John Lewis, and Peter Darmantier, ffor and on the behalf of the inhabitants aforesaid, their heyres, and successors, to the proper use and behooff of the said inhabitants, their heyers and successors forever; In witness whereof the partyes to these presents have hereunto sett their hands and seales, this 14th day of May, in the 22nd yeare of his Majestyes reigne, Annoque Dom. 1670.

Sealed and Delivered in the presence of Mathias
Nicolls, R. Lough, Samuel ð Davies, John Garland.

his marke

The mark of ꝑ Peter, (L. S.)

The mark of o Elmohar, (L. S.)

The mark of & Job, (L. S.)

The mark of ? Makaquiquos, (L. S.)

The mark of 7 Shamese, (L. S.)

“This Deed was acknowledged by the within written Sachems, before the Governor in the presence of us, the day and year within written.

MATHIAS NICOLLS, Secretary.

The mark of ð SAMUEL DAVIES.

“Recorded by order of the Governor,

MATHIAS NICOLLS, Secretary.

The Inventory, or Schedule referred to in the Deed.

“The payment agreed upon ffor the purchase of the land in and about Bedford, within the jurisdiction of Breucklyn, conveyed this day by the Indian Sachems, proprietors is, viz.

100 Guilders Seawant,

Half a tun of strong Beer,

2 half tuns of good Beer,

3 Guns, long barrells, with each a pound of powder, and lead proportionable—2 bars to a gun,
4 match coates.”

May 13, 1686. Governor Dongan granted to the inhabitants of Brooklyn the following confirmatory patent:

L. S. “Thomas Dongan, Lieutenant Governor, and Vice Admiral of New-York, and its dependencies under his Majesty James the Second, by the grace of God, of England, Scotland, France and Ireland, King, Defender of the Faith, &c.—Supreme lord and proprietor of the Colony and province of New-York and its dependencies in America, &c. To all to whom this shall come sendeth greeting, whereas the Honorable Richard Nicolls, Esq. formerly Governor of this province, did by his certain writing or patent under his hand and seal, bearing date the eighteenth day of October, Annoque Domini, one thousand six hundred and sixty-seven, ratifie, confirm and grant unto Jan Everts, Jan Damen, Albert Cornelissen, Paulus Verbeeck, Michael Enyle, Thomas Lamberts, Tunis Gisberts Bogart, and Joris Jacobsen, as patentees for and on behalf of themselves and their associates, the freeholders and inhabitants of the town of Breucklen, their heirs, successors, and assigns forever, a certain tract of land, together with the several parcels of land which then were or thereafter should be purchased or procured for and on behalf of the said town, whether from the native Indian proprietors, or others within the bounds and limitts therein sett forth and expressed, that is to say, the said town is bounded westward on the further side of the land of Mr. Paulus Verbeeck, from whence stretching south-east they go over the hills, and so eastward along by the said hills to a south-east point, which takes in all the lotts behind the swamp, from which said lotts they run north-west to the River, and extend to the farm on the other side of the hills heretofore belonging to Hans Hansen, over against Keak or Look-out, including within the said bounds and limitts all the lots and plantations, lying and being at the Gauwanes, Bedford, Wallaboct and the ferry, all which said parcells and tract of land and premises within the bounds and limitts aforementioned described, and all or any plantation or plantations thereupon, from henceforth are to be, appertain and belong to the said town of Breucklyn, Together with all harbor, havens, creeks, quarries, woodland, meadow ground, reed land or valley of all sorts, pastures, marshes, waters, rivers, lakes, fishing, hawking, hunting, fowling,

and all other profits, commodities, emoluments and hereditaments to the said lands and premises within the bounds and limitts set forth, belonging, or in any wise appertaining, and with all to have freedom of commonage for range and feed of cattle and horses, into the woods with the rest of their neighbours, as also one third part of a certain neck of meadow ground or valley, called Seller's neck, lying and being within the town of Jamaica, purchased by the said town of Jamaica from the Indians, and sold by them unto the inhabitants of Breucklen aforesaid, as it was laid out aforesaid, and divided by their mutual consent and order of the Governor. To have and to hold unto them the said patentees and their associates, their heirs, successors and assigns forever, as by the said patent reference being thereunto had, doth, fully and at large appear. And further, in and by the said patent, the said Governor, Richard Nicolls, Esq. did erect the said tract of land into a township by the name of Breucklen aforesaid, by that name and style to be distinguished and known in all bargains, sales, deeds, records and writings whatsoever; and whereas the present inhabitants and freeholders of the town of Breucklen aforesaid, have made their application to me for a confirmation of the aforesaid tract of land and premises in their quiet and peaceable possession and enjoyment of the aforesaid land and premises. Now Know Ye, That I, the said Thomas Dongan, by virtue of the commission and authority derived unto me, and power in me residing, have granted, ratified and confirmed, and by these presents do grant, ratifie and confirm, unto Teunis Gysberts, Thomas Lamberts, Peter Jansen, Jacobus Vander Water, Jan Dame, Joris Jacobs, Jeronimus Rapalle, Daniel Rapalle, Jan Jansen, Adrian Bennet, and Michael Hanse, for and on the behalf of themselves and the rest of the present freeholders and inhabitants of the said town of Breucklen, their heirs and assigns forever, all and singular the afore-recited tract and parcels of land set forth, limited and bounded as aforesaid; together with all and singular, the houses, messuages, tenements, fencings, buildings, gardens, orchards, trees, woods, underwoods, pastures, feedings, common of pasture, meadows, marshes, lakes, ponds, creeks, harbors, rivers, rivulets, brooks, streams, highways and easements whatsoever, belonging or in any wise appertaining to any of the afore-recited tract or parcells of land and divisions, allotments, settlements made and appropriated before the day and date hereof. To Have and To Hold, all and singular, the said tract or parcels of land and premises, with their, and every of their appurtenances unto the said Tunis Gysberts, Thomas

Lamberts, Peter Jansen, Jacobus Vander Water, Joris Jacobs, Jeronimus Rappalle, Daniel Rappalle, Jan Jansen, Adrian Bennet and Michael Hanse, for and on behalf of themselves and the present freeholders and inhabitants of the town of Breucklen, their and every of their heirs and assigns forever, as tenants in common without any let, hindrance, molestation, right of survivorship or otherwise, to be holden in free and common socage according to the tenure of East Greenwich, in the county of Kent, in his Majesty's kingdom of England. Yielding, rendering and paying therefor yearly, and every year, on the five and twentyeth day of March, forever, in lieu of all services and demands whatsoever, as a quit rent to his most sacred Majesty aforesaid, his heirs and successors, at the city of New-York, twenty bushels of good merchantable wheat. In testimony whereof, I have caused these presents to be entered and recorded in the Secretary's office, and the seal of the Province to be hereunto affixed this thirteenth day of May, Anno. Domini, one thousand six hundred and eighty-six, and in the second year of his Majesty's reign.

THOMAS DONGAN."

Quit rents to the following amounts and at the following periods have been paid on the Brooklyn patents.

June 8, 1713. Paid to Benjamin Van de Water, Treasurer, the sum of £96 7s. 1d. for upwards of 16 years quit rent.

April 6, 1775. Charles Debevoise, Collector of the town of Brooklyn, paid to the Receiver General of the Colony of New-York, 20 bushels of wheat, for one year's quit rent, due from said town.

November 9, 1786. Fernandus Suydam, and Charles C. Doughty, two of the Trustees of the town of Brooklyn, paid to the Treasurer of the State of New-York, the sum of £105 10s. in full for arrears of quit rent due from the said town.

TOWN RIGHTS AND FERRIES.

The difference between this town and the city of New-York relative to the water rights of the former, has deservedly excited the attention and interest of our inhabitants, as involving property to a great amount, and unjustly withholding from our town a revenue which would enable it to improve with almost unparalleled rapidity. In order that each person so interested may form a correct opinion of the subject matter in dispute, the Compiler has thought proper, under this head, to lay before them the foundations of the claims on both sides of the question.

October 18, 1667. In the reign of Charles 2d. Richard Nicolls, Esq. Governor General of the Province of New-York, under his Royal Highness James, the Duke of York, &c. afterwards James 2d. of England, granted to the inhabitants of this town a confirmatory patent, acknowledging that they were rightfully, legally and by authority in possession of the property and privileges they then enjoyed. The patent after naming the patentees, and describing the bounds of the town, and binding by the *River* and not by high water mark, proceeds to say, "Together with all *havens, harbors, creeks, marshes, waters, rivers, lakes, fisheries.*" "Moreover, I do hereby give, ratify and confirm unto the said patentees and their associates, their heirs, successors and assigns, all the *rights and privileges* belonging to a town within this government." Under this patent the town of Brooklyn justly claims the land between high and low water mark on their shore, in opposition to the claims of the Corporation of the city of New-York; and an equal right with them to erect ferries between the town of Brooklyn and the city of New-York.

It does not appear that there was any adverse claim on the part of New-York, until the 27th of April, 1686, *nineteen years* after the date of the Brooklyn patent, when the Corporation of New-York obtained a charter from Governor Dongan, by which the ferries were granted to them, but not a word mentioned about the land between high and low water mark on the Brooklyn side. From the reading of this charter it appears as if the Governor was doubtful as to his right even to grant the ferry, for it contains an express saving of all the rights of all other persons, bodies politic and corporate, their heirs, successors and assigns, in as ample a manner, as if that charter had not been made.

May 13, 1686. The freeholders and inhabitants of Brooklyn somewhat apprehensive of encroachments by New-York, obtained from Governor Dongan, a patent under the seal of the Colony, fully confirming that granted them by Governor Nicolls.

May 6, 1691. An act was passed by the Governor, Council and General Assembly of the Colony of New-York, “for settling, quieting and confirming unto the cities, towns, manors, and freeholders within this Province, their several grants, patents and rights respectively.” By this act the freeholders and inhabitants of the town of Brooklyn were confirmed in the rights they possessed and enjoyed under their two several patents.

October 12, 1694. The Corporation of New-York, not thinking their foothold on the Brooklyn side sufficiently secure, purchased of one William Morris, for no specific consideration, a piece of land in Brooklyn near the ferry. This deed is the foundation of the Corporation claim to their land in the village of Brooklyn. A copy of which will be found in the appendix marked with the letter A.

Bent on unjustly wresting from the town of Brooklyn their water right, the Corporation on the 19th of April, 1708, obtained from Governor Cornbury, a man infamous for his vices, and disregard of justice, another charter, in which they came out more openly than before, and claimed the *vacant* land to high water mark, on Nassau Island, reserving to the inhabitants of Brooklyn the right of transporting themselves in their own boats ferriage free, to and from New-York.^[6] By this charter, no matter how ample soever they might have considered it at the time, they obtained nothing but *vacant* land to high water mark; that is the land which was not already granted, and in the possession of some other person or persons, which was not the fact as to the land on the Brooklyn side, it being vested in the patentees, their heirs, successors and assigns forever; so that the only power or authority remaining in the Governor, was to grant the Corporation of New-York, the privilege of buying the water rights of the inhabitants of Brooklyn. But that would not answer their purpose, for those rights could be bought cheaper of Governor Cornbury, than they could of this town.

This proceeding on the part of New-York stimulated the inhabitants of Brooklyn to obtain from the Colonial Legislature in 1721, an act confirming their patent rights.

To obviate the effects of this law, and strengthen the charter of Cornbury, which from the circumstances under which it was obtained, the Corporation feared was invalid, on the 15th of January, 1730, they procured from Governor John Montgomerie, a new charter confirming their pretended right to the land to *high water mark on our shore*.^[7]

The grants from the Corporation of New-York, under their two charters for the water lots on the Brooklyn side, are very artfully and ingeniously drawn. By those grants are only conveyed “all the estate, right, title, interest, property, claim, and demand whatsoever, in law and equity” of them the said Corporation; and their covenant for quiet possession only extends to them and their successors, and not against any other persons lawfully claiming the premises. These grants, in order to save the Corporation harmless against the claims of Brooklyn, also contained a covenant to the following effect: “It is hereby covenanted, granted and agreed upon by and between the parties to these presents (that is, the Corporation of New-York and the person to whom they give the grant,) and the true intent and meaning hereof also is, and it is hereby declared, that this present grant, or any words, or any thing in the same expressed, or contained shall not be adjudged, deemed, construed or taken to be a covenant or covenants on the part and behalf of the said parties of the first part, (that is, the Corporation of New-York) or their successors for any purpose or purposes whatsoever, but only to pass the estate, right, title, and interest, they have or may lawfully claim by virtue of their several charters, of in and to the said premises.” Which covenant evidently shews a want of confidence in the validity of their title on the part of the Corporation.

October 14, 1732. An act was passed by the General Assembly of this Colony, “confirming unto the City of New-York its rights and privileges.” By this act no addition was made to their former pretended rights.

November 14, 1753. The freeholders and inhabitants of this town appointed Jacobus Lefferts, Peter Vandervoort, Jacob Remsen, Rem Remsen, and Nicholas Vechte, Trustees, “to defend our patent where in any manner our liberties, privileges and rights in our patent specified is encroached, lessened or taken away by the commonalty of the city of New-York.” A copy of the proceeding of the town meeting at which the above trustees were elected will be found in the appendix marked B.

Not satisfied with the encroachments they had made, the Corporation began to question the right of the inhabitants of Brooklyn to cross to and from New-York ferriage free in their own boats, and to carry over the inhabitants in those boats;—the result was, that in July, 1745, a suit was commenced by one of the inhabitants of Brooklyn, named Hendrick Remsen, against the Corporation of New-York, which was tried before a jury in Westchester county. A special verdict was found setting forth all its patents and charters, and among other things, that the road from which the said Hendrick Remsen ferried the inhabitants of Brooklyn to and from New-York, “then and long before was laid out for a public highway leading down to *low water mark* on the East River between the places aforesaid called the Wallabout and the Red Hook on Nassau Island, and the jurors aforesaid upon their oath aforesaid, do further say, that the River called the East River, over which the said Hendrick did carry the persons and goods aforesaid, from the said lands between the Wallabout and the Red Hook, is a large and public and navigable river used by his Majesty’s ships and other ships and smaller vessels employed in trade and commerce, and hath always been so used from the first settlement of this Colony.” On argument judgment was rendered by the Supreme Court of this Colony in the month of October, 1775, in favour of Hendrick Remsen, that he recover his damages against the Mayor, Aldermen and Commonalty of the city of New-York, and the sum of one hundred and eighteen pounds, fourteen shillings and ten pence half penny for his costs and charges. An appeal to the King and Council from this decision, was brought by the Corporation, which was not determined in consequence of the Revolutionary war. There is a tradition in this town that the Corporation of New-York were so apprehensive of this claim on the part of the town of Brooklyn, that in order to disengage Hendrick Remsen from the interest of the town, they gave him a house and lot of land near Coenties Slip, in the city of New-York. How far this tradition is correct, the Compiler is unable to say.—It appears however, that he about that time became in possession of such property, and the same remained in his family within the memory of some of our inhabitants.

Our two Patents are confirmed by the Constitution of this State, which confirms all grants of land within the State, made by the authority of the King of Great Britain or his predecessors, prior to the 14th of August, 1775.

The Compiler thinking it would not be uninteresting to his fellow citizens to see a statement of the amount received by the Corporation of

New-York for quit rent on the water lots claimed by them, has given the following short statement.

The Commissioners of the Sinking Fund of the City of New-York have received, from August 23d, 1813, to Dec. 31, 1824.

For Water lot rents,	\$17,635 24
Commutation for water lot rents,	17,275 41
	\$34,910 65

The Corporation of New-York during the present year 1824, have received for water lot rents the sum of	\$8,862 97
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Within a short time the jurisdiction of the village of Brooklyn has been extended beyond low water mark, leaving the pretended right of soil still in the Corporation of New-York.^[8] August term, 1821, in the case of Udall vs. the Trustees of Brooklyn, the Supreme Court of this State decided that Kings County, of which the village of Brooklyn is part, includes all the wharves, docks, and other artificial erections in the East River, opposite to the City of New-York, though west of the natural low water mark on the Nassau or Long-Island shore; and the jurisdiction of the village extends to the actual line of low water, whether formed by natural or artificial means. Same term, in the case of Stryker vs. the Mayor, &c. of the City of New-York, the Supreme Court decided that the city and county of New-York includes the whole of the Rivers and harbour adjacent to actual low water mark, on the opposite shores, as the same may be formed, from time to time, by docks, wharves and other permanent erections; and although the jurisdiction of the city does not extend so as to include such wharves, or artificial erections, yet it extends over the ships and vessels floating on the water, though they be fastened to such wharves or docks.

April 9, 1824. The Legislature of the State of New-York in the act to amend the act entitled “an Act to incorporate and vest certain powers in the freeholders and inhabitants of the village of Brooklyn in the County of Kings,” granted this town concurrent jurisdiction with the City of New-York in the service of process, in actions civil and criminal, on board of vessels attached to our wharves; and in the act for the establishment of a Board of Health in the village of Brooklyn, authority is given to the said Board to remove all infected vessels from the wharves within the said village.

The ferries have been unavoidably, in some degree, taken into consideration when speaking of our town rights. The compiler will therefore confine himself to such historical facts, and laws, and such proceedings, passed and had by the Colonial and State legislatures as may relate particularly to them.

During the early years of this Colony, the old ferry was from near the foot of Joralemon-street, to the Breede Graft, now Broad-street, in the City of New-York. At that period a creek ran through the middle of Broad-street, up which the boats ascended to a ferry-house which is still standing. At this time it is difficult to ascertain the exact period when the old ferry was established at its present situation on the Brooklyn side. In 1697, John Aeresen was ferry master.

It appears from the following order, that the Court of Sessions of Kings County, exercised some authority over the ferry between Brooklyn and New-York. October 7, 1690. "Whereas much inconvenience does arise by several negroes coming on this Island from New-York and other places, and from this Island to New-York. It is ordered, that the ferrymen shall not bring or set over any negroes or slaves upon the Sabbath day, without a ticket from their masters."

Acts have been passed by the Colonial and State legislatures for the purpose of regulating the ferries between this town and the City of New-York, in the following chronological order:

November 2d, 1717, an act was passed, which was revived in the year 1726, and again in 1727. October 14, 1732. Another act was passed for the same purpose. By this act it was provided, "That the ferryman for the time being, shall not impose, exact, demand, or receive any rates or ferriage for any goods or things whatsoever, transported by any of the inhabitants living amongst the River at or near the Ferry on Nassau-Island, in their own boats or canoes," provided that the same be their own goods or commodities. This act continued in force until the 28th of February, 1789, when another act was passed regulating the ferriage, and containing a similar proviso. April 9, 1813. The last mentioned law was re-enacted, with the same provision.

The winter previous to the prosecution of the suit between Hendrick Remsen, and the Corporation of the City of New-York, the inhabitants of Brooklyn made an attempt to obtain from the Colonial legislature, a further

confirmation of some of their rights, particularly relating to the ferry; on which application the following proceedings were had.

January 30, 1745-6. In General Assembly, a petition of the Trustees of the town of Brookland, in Kings County, in behalf of themselves, and the freeholders and inhabitants of the said township, was presented to the House and read, setting forth, That a great number of the inhabitants of the said township, living near the ferry from Nassau-Island to New-York, and having their chief dependence of supporting their families by trading to the New-York markets, are by one act of the General Assembly, entitled, an act to regulate the ferry between the City of New-York and the Island of Nassau, and to establish the ferriage thereof, passed in the sixth year of his Majesty's reign, debarred from transporting their goods in their own vessels, to the said markets, which exposes them to very great hardships, difficulties and expences, and therefore humbly praying that they may have leave to bring in a bill to relieve them from the aforesaid hardships. Upon a motion of Major Van Horne, (of New-York) ordered, that the Clerk of this house serve the Corporation of the City of New-York, with a copy of the said petition forthwith.

In General Assembly, April 12, 1746, Mr. Abraham Lott, according to leave, presented to the house, a bill entitled, "an act to repeal an act therein mentioned, so far as it relates to the freeholders and inhabitants of the township of Brooklyn, in Kings County, within this colony;" which was read the first time, and ordered a second reading.—Ordered, that the Corporation of the City of New-York, be served with a copy of the said bill.

April 18, 1746. In General Assembly. The bill entitled, an act to repeal an act therein mentioned, so far as it relates to the freeholders and inhabitants of the township of Brooklyn, in Kings County, within this colony, being offered to be read a second time, Capt. Richards (of New-York) moved, that the second reading of the said bill might be deferred until the next meeting of the House, after the first day of June next; which was agreed to by the House and ordered accordingly.

June 20, 1746. In General Assembly. A petition of the Mayor, Aldermen and Commonalty, of the City of New-York, was presented to the House and read, setting forth, That the Corporation having been served with a copy of a bill now before this House, entitled, an act to repeal an act therein mentioned, so far as it relates to the freeholders and inhabitants of the

township of Brooklyn, in Kings County, within this colony; do conceive that the passing the said Bill into a law, may affect their ancient rights and freehold, and therefore humbly praying that they may be heard by their Counsel against the said bill, at the bar of this House, on Friday next, ordered, that the Trustees of the township of Brooklyn, be heard by their counsel in support of the said Bill, at the bar of this house, on Friday next, and that Mr. William Smith appear for them. Ordered, that the Clerk of this house serve the parties with a copy of these orders forthwith.

June 27, 1746. In General Assembly. The House being informed, that the Corporation of the City of New-York were attending with their Counsel to be heard against the Bill; and that the Trustees of the township of Brooklyn, were also attending with their Counsel to be heard in support of the said Bill; both parties were called in, and the counsel on both sides having been fully heard, for and against the said Bill, they were directed to withdraw; and the Bill being read the second time, the question was put,—whether the said Bill should be committed, and carried in the affirmative in the manner following:—Affirmative, Messrs. Lott, Chambers, Stillwell, Livingston, Harring, Cornell, Abraham Lott, Lecount, Bradt, Nicoll, Hardenbergh, and Gale 12.—Negative, Messrs. Richards, Cruger, Clarkson, Van Horne, Philipse, Morris, Verplank, and Thomas, 8.

July 4, 1746. In General Assembly, the engrossed Bill entitled, an act to repeal an act therein mentioned, so far as it relates to the freeholders and inhabitants of the township of Brooklyn, in Kings County, within this colony, was read the third time, and upon Mr. Speaker's putting the question, whether the Bill should pass, a motion was made by Col. Morris in the words following, viz.—As this Bill has been already ordered to be engrossed, by a majority of the House, and the question that now is put, is, whether this Bill shall pass; I must beg leave to give my reasons for opposing its passage. The first is, it is alledged by this bill, that the people of Brooklyn had a right, prior to the act passed in the year 1732, which was not proved, nor attempted upon the hearing before this house; but if we pass this Bill, we allow that right to be proved, and then it becomes our allegation, which I conceive, inconsistent with the honor and justice of this house, to alledge any thing in such a case, but what has been proved. The second is, it implies that the act in 1732, took away unjustly, a right from the people of Brooklyn, that they were entitled to. Thirdly, it implies, that the house have fixed the two points before mentioned, and then it will

necessarily follow, that we have considered the rights of the Corporation,^[9] as well as those of the people of Brooklyn; that we have not, I appeal to the house, who must allow, that no such right ever appeared to us, at least as a House, and for us to declare certain facts by a Bill, which has never been proved, will be doing, what I conceive, we ought not to do, if we make justice and equity the rule of our conduct. For these reasons, I move, that the Bill may be rejected. The question being put thereon it was carried in the negative, in the manner following, viz.—For the negative, Messrs. Chambers, Lott, Cornell, Hardenbergh, A. Lott, Bradt, Lecount, Gale, and Haring, 9. Affirmative, Messrs. Cruger, Morris, Richards, Van Horne, Clarkson, Verplank, Philipse, and Thomas, 8.

Resolved, That the Bill do pass. Ordered, that Colonel Haring, and Mr. Hardenbergh do carry the Bill to the Council and desire their concurrence. By which it appears that it was considered by the House, as well as subsequently by the Supreme Court, that the right of the town was sufficiently proved, notwithstanding the assertions of Colonel Morris.

This Bill by *some means* was stifled in the Council,^[10] and never became a law.

During the Revolution the Old ferry was kept by Messrs. Van Winkle, and Bukett; at which period the usual charge for crossing was six pence for each passenger.

August 1, 1795. The ferry from the foot of Main-street, Brooklyn, to the foot of Catharine-street, New-York, commonly called the New ferry, was established by Messrs. William Furman and Theodosius Hunt, lessees from the Corporation of the City of New-York.

In consequence of the prevalence of the Yellow fever in Brooklyn, in the month of August, 1809, the old ferry was removed to the foot of Joralemon-street, and the boats plied from there to Whitehall, New-York.

On the 4th day of March, 1814. The legislature of this State passed an act allowing William Cutting and others his associates, to charge four cents for each passenger crossing in the Steam-boat to be by them placed on the Old ferry. Previous to this, the fare was two cents for each passenger. May, 1814, the Steam-boat commenced plying on the old ferry between Brooklyn and New-York.

This Ferry Company derive their interest in the old or Fulton ferry, from a lease executed January 24th, 1814, by the Mayor, Aldermen and

Commonalty of the City of New-York, to Robert Fulton, and William Cutting. The rent reserved by the Corporation on this lease is \$4000 per annum for the first 18 years, and \$4500 per annum for the remaining 7 years.^[11] It is a difficult matter to speak correctly of the present income of this ferry. At its first establishment the dividends were made on a capital estimated at \$45,000, divided into shares of \$1000 each, and were made at the rate of 5 per cent. for six months and what remained after this 5 per cent. taken out, formed the surplus dividend. From May 1814, to November 1815, the regular dividends on one share amounted to \$157 11½, and during the same period the surplus dividend amounted to \$228 21½, making a dividend of \$385 33, on one share for about 18 months equal to about 25 per cent. per annum.

At the Session of the Legislature in the winter of 1818, the Corporation of New-York presented a petition praying that they might have the regulation of the rates of ferriage between this town and the city of New-York—against which the Trustees of the village of Brooklyn, and the inhabitants of this town strongly remonstrated, stating that “they had full confidence that the Legislature of this state would never increase the rates of ferriage, nor permit the same to be increased, beyond what is necessary to support the ferries in the best manner; they therefore prayed that the Legislature would not surrender to the Corporation of New-York a right, which had been reserved by the Legislature, and which the petitioners deemed of the greatest importance to the inhabitants of Nassau-Island.”

ROADS AND PUBLIC LANDING PLACES.

This town appears to have entered early into the contest respecting roads. There are many instances on record previous to 1683, of the Constable of Brooklyn being ordered to repair the roads, and in case of neglect, fined; and in one instance he was ordered by the Court not to depart until further order.

The main road, or as part of it is now called, Fulton-street, in the village of Brooklyn, was laid out March 28th, 1704, by Joseph Hageman, Peter Cortelyou, and Benjamin Vandewater, Commissioners, appointed by an act of the General Assembly of the colony of New-York, for the laying out, regulating, clearing and preserving of public highways in the colony. The record of this road is as follows:—"One publique, common and general highway, to begin ffrom *low water marke* at the ferry in the township of Broockland, in Kings county, and ffrom thence to run ffour rod wide up between the houses and lands of John Aerson, John Coe, and George Jacobs, and soe all along to Broockland towne aforesaid, through the lane that now is, and ffrom thence straight along a certaine lane to the Southward corner of John Van Couwenhoven's land, and ffrom thence straight to Bedfford as it is now staked out, to the lane where the house of Benjamin Vandewater stands, and ffrom thence straight along through Bedfford towne to Bedfford lane, running between the lands of John Garretse, Dorlant and Claes Barnse, to the rear of the lands of the said Cloyse, and ffrom thence southerly to the old path now in use, and soe all along said path to Philip Volkertses land, taking in a little slip of said Philip's land on the south corner, soe all along said road by Isaack Greg's house to the Fflackbush new lotts ffence, and soe all along said ffence to the eastward, to the north-east corner of Eldert Lucas's land, lying within the New lotts, of Fflattbush aforesaid, being ffour rod wide all along, to be and continue forever."

This road or "king's highway," as it was then called, leading from the ferry to the old Dutch Church, or Brooklyn parish, was the cause of much contention. At the April term of the General Sessions of the Peace for Kings County, in 1721, indictments were found for encroaching on the "common high way of the King, leading from the ferry to the Church at Brookland," against John Rapalje, Hans Bergen and James Harding, and others.—By which indictments it appears that the road should have been four rods wide.

These indictments appear to have been predicated as well on the following application of John Rapalje and Hans Bergen, as on complaints from several of the inhabitants:

“Flatbush, April 19, 1721. John Rapalje and Hans Bergen of the ferry, desires of the grand jury that the Commissioners now being should be presented for not doing their duty in laying out the king’s highway according to ye law, being the King’s highway is too narrow from the ferry to one Nicalus Cowenhoven, living at Brooklyn and if all our neighbours will make ye road according to law, then ye said John Rapelje and Hans Bergen, is willing to do the same as aforesaid, being they are not willing to suffer more than their neighbours. As witness our hands the day and year first above written.

JAN RAPELJE,
HANS BERGEN.”

Some of the persons indicted considering themselves aggrieved, and others who feared being placed in the same situation, applied to the Colonial Legislature, and July 27th, 1721, obtained the passage of a law to “continue the common road or king’s highway, from the ferry, towards the town of Breuckland, on the Island of Nassau, in the Province of New York,” with the following preamble. “Whereas several of the inhabitants on the ferry, on the Island of Nassau, by their petition preferred to the General Assembly, by setting forth, that they have been molested prosecutions, occasioned by the contrivance and instigations of ill and disaffected persons to the neighbourhood, who would encroach upon the buildings and fences that have been made many years, alledging the road was not wide enough, to the great damage of several of the old inhabitants, on the said ferry; the said road as it now is, has been so for at least these sixty years past, without any complaint, either of the inhabitants or travellers.”

The law then proceeds to establish the road “forever,” as it then was, from the ferry upwards to the town of Breuckland, as far as the swinging gate of John Rapalje, just above the house and land belonging to James Harding. These proceedings will readily account for Fulton-street, in the present village of Brooklyn being so narrow and crooked in many places.

The point however to which the Compiler wishes to draw the attention of his fellow citizens, is to the existence and location of several public

highways and landing-places in this town which at present are known to very few.

There is a public landing-place at or near the mills of Nehemiah Denton, Esq. and a public highway leading thereto.—The record of which is as follows:—“One common highway to Gawanus mill, to begin ffrom the north-east corner of Leffert Peterses ffence, and soe along the roade westerly, as it is now in use to the lane yt parts the lands of Hendrick Vechte, and Abraham Brower, and Nicholas Brower, and soe all along said lane as it is now in ffence to the house of Jurian Collier, and from thence all along the roade now in use to the said Gowanos mill, being in all four rod wide to the said lane; and that there be a convenient landing place for all persons whatsoever, to begin ffrom the southernmost side of said Gowanus mill house, and ffrom said house to run ffour rod to the southward, ffor the transportation of goods and the commodious passing of travellers; and that said highway to said Gowanos mill ffrom said house of said Jurian Collier shall be but two rod only and where it is now in use; said common highway to be and continue forever; and ffurther that the ffence and gate that now stands upon the entrance into said mill neck, ffor the inclosing and securing of said neck, shall soe remaine and be alwayes kept soe inclosed with a ffence and hanging gate; and the way to said mill to be thorow that gate only and to be allwayes shutt or put to by all persons that passes thorow.” The Commissioners laid out the above road and landing place, March 28th, 1704.

In 1709, the Commissioners laid out another road and landing place, at or near the mill of John C. Freeke, Esq. The record of which is as follows:—“One common highway to begin ffrom the house of Jurian Collier to the New mill of Nicholas Brower, now sett up on Gowanos mill neck soe called, as the way is now in use along said neck to said mill to be of two rod wide; and that there shall be a landing place by said mill in the most convenient place ffor the transportation of goods and the commodious passing of travellers; and said highway and landing place to be, remaine and continue forever.”

This town has a public landing place seven rods in length, near the foot of what is now called District-street, in the village of Brooklyn.—This landing place is mentioned in the record of a road three rods wide, leading to the same, which record the Compiler omits inserting in consequence of its length and the multitude of entries connected therewith.

It is believed by many, and not without very good reason, that this town has a public landing place a short distance to the North of the Old or Fulton ferry, and which landing place is now in the possession of the Corporation of New-York.

There is a very distinct tradition of a road to near where this landing place is supposed to have been, at the foot of which road was the public slaughter house, where the butchers of Brooklyn dressed their meats. The road referred to, came out where the house of the Fire Engine No. 4 now stands, and the existence of that road gives the town its title to that small piece of ground.

COMMON LANDS, AND THE DIVISION THEREOF.

The town having acquired so great an extent of Common land by the purchase of 1670, from the Indians, the inhabitants thought proper to take some order for the division and defending thereof, together with their other lands—accordingly, “at a Town meeting held the 25th day of February, 169 $\frac{2}{3}$, att Breuklyn, in Kings County. Then Resolved to divide their common lands and woods into three parts, in manner following to witt:

1. All the lands and woods after Bedford and Cripplebush, over the hills to the path of Newlotts shall belong to the inhabitants and freeholders of the Gowanis, beginning from Jacob Brewer and soe to the uttermost bounds of the limits of New-Utrecht.

2. And all the lands and woods that lyes betwixt the abovesaid path and the highway from the ferry towards Flatbush, shall belong to the freeholders and inhabitants of Bedford and Cripplebush.

3. And all the lands that lyes in common after the Gowanis, betwixt the limits and bounds of Flatbush and New Utrecht shall belong to the freeholders and inhabitants of Brooklyn, fred. neck, the ferry and the Wallabout.” This proceeding of the Town meeting was allowed of by the Court of Sessions, held at Flatbush, on the 10th day of May, 1693.

The following will serve to shew the manner in which the inhabitants of this town elected the Trustees of their common lands, and the duties of those Trustees. “Att a towne meeting held this 29th day off Aprill, 1699, at Breucklyn, by order off Justice Machiel Hanssen, ffor to chose townsmen ffor to order all townes busines and to deffend their limitts and bounds and to dispose and lay out sum part thereof in lotts, to make lawes and orders ffor the best off the inhabitants, and to raise a small tax ffor to defray the towne charges, now being or hereaffter to come, to receive towns revenues and to pay townes debts, and that with the advice off the Justices off this said towne standing the space and time off two years. Chosen ffor that purpose by pluralitie off votes. Benjamin Vande Water, Joores Hanssen, Jan Garretse Dorlant.

By order of inhabitants afforesaid
J. VANDE WATER, Clarke.”

These proceedings were recorded by order of the Court of Sessions, on the 9th day of May, 1699.

The following proceeding is curious, setting forth the ancient practice of tradesmen cutting down timber in the public woods, and the regulations made respecting the same. It appears that directly after the Trustees were chosen by the above meeting they together with the Justices, held the following meeting. "Att a meeting held this 29th day off Aprill, (1699) in Breucklyn, Present, Benjamin Vande Water, Jooris Hanssen, Jan Geritse Dorlant, being choisen townsmen in the presence and with the advice off the Justices off this towne.

Considering the greate inconvenience, lose and intrest that the inhabitants off this towne have by reason that the tradesmen here living in this towne doe ffall and cutt the best trees and sully the best of our woods and sell the worke thereoff made the most part to others living withoute the towne, and that the shoemakers and others doe cutt and fall all the best treese ffor the barke, and the wood lyes and rott, and that some persons doe cutt and ffall trees for timber and ffensing stuff, and leave the trees in the woods soe cutt until they are spoilt, and that people off other towns come and cutt and fall trees ffor timber, ffensing stuff, and ffire woods, and transport the same away out off our townes bounds and limitts, and that without leave or consent off the towne, soe that in the time off ffew yeares there shall bee no woods leaved ffor the inhabitants ffor timber or ffensing stuff to the ruine off the said towne. It is therefore ordered, That ffrom the date hereoff no tradesman shall make any worke ffor to sell to others without thee towne, ffrom wood soe cutt as afforesaid as only ffrom old wood.

That no shoemaker or others shall cutt or ffall any trees ffor to barke in the common woods uppon the penaltie off ffive pound ffor every tree soe cutt.

That no men shall leave any timber, ffensing stuffe, or other wood in the woods longer as six weeks affter itt is cutt, uppon the penaltie, that itt shall be ffree ffor others to take and carry the same away as their owne wood. And that iff any one off other townes shall be ffounden within our townes limitts to cutt or carry away any sorts off woods ffor timber, ffensing stuff or ffire wood, that itt shall bee ffree ffor any one off this towne to take it away and to take out writ to arrest, or to apprehend such offender or

offenders presently, and that the Justices off this towne shall answer the action as iff itt were done by their owneselves,^[12] These proceedings were also recorded by order of the Court of Sessions.

“Towne meeting held this 5th day off May, 1701, by order off Justices Cornelis Sebringh and Machiell Hanssen. We the major part off the ffreeholders off Breucklyn doe hereby nominate, constitute and appoint Capt. Jooris Hanssen, Jacob Hanssen and Cornelis Van Duyn, to bee trustees of our Common and undivided lands, and to deffend and maintaine the rights and privileges off our General pattent, as well within as without.”

“Towne meeting held this 2d day off February, 1701-2, by order off Justice Cornelis Sebringh. Purposed iff the order off Bedford, made the 12th day off April, 1697, shall bee conffirmed concerning the lying out of the common or undivided lands or that the said land shall bee lyed out according to the last tax, concerning the deffending off our limitts.

Resolved by the ffreeholders aforesaid, that the chosen townsmen shall ley out the commens according as by the said order off Bedford was concluded, with the ffirst opportunitie, and that all the lotts joyning to the common woods shall be surveyed according to their grants.”

The following Resolution was passed for defending those inhabitants to whom portions of the Common lands were allotted, in their enjoyment of the same. “Att a Towne meeting held att Brookland, in Kings County, this 14th day of March, 1701-2. Present, Machiel Hanssen, Cornelis Sebringh, and Hendrick Vechten, Esquires, Justices.—Resolved, by the major part of the freeholders of the said towne of Brookland, that every man that has now a right, lott, or lotts laid out in the quondam Common and undivided lands of Brookland aforesaid, shall forever free liberty have for egress and regress to his said lotts for fetching off wood or otherwise, over all or any of the said lott or lotts of the said freeholders in the lands aforesaid. And further, that if any of the said freeholders shall at any time or times hereafter, come by any loss or trouble, cost or charges by lawe or otherwise, of, for or concerning the title of any of their said lott or lotts, by any person or persons, either within the township of Brookland afforesaid, or without, that it shall be defended and made goode, (if lost) att all the proper costs and charges of all the freeholders of said towne equally.”

It appears that all the Common lands of this town had been divided among the freeholders, and a portion annexed to each house in the town.—

A deed dated the 17th of April, 1705, after conveying a house and lot of land in this town, conveys “alsoe all the rights and priviledges in the common woodlands of the towne of Broockland aforesaid, to said house, belonging as per record of said towne may appear.”^[13]

These lands, in the month of February, 1701-2, were surveyed by Pieter Corteljeu and S. Clowes, two surveyors, and divided by them into three divisions. The first or west division consisted of 62 lots, containing about 5 acres each, about 310 acres. The second or middle division of 62 lots, containing about 10 acres each, about 620 acres; and the third or east division also of 62 lots, containing about 10 acres each, about 620 acres.— Total number of acres about 1550.

DIFFERENCES AS TO BOUNDS.

The difference between this town and the city of New-York, having been treated of under the head of Town Rights and Ferries, the compiler will confine himself to the disputes which formerly existed between this town, and the towns of Bushwick, Flatbush and New-Utrecht, respecting their bounds.

The following proceeding relates generally to the defence and settling of the limits of this town.

“Towne meeting held this 7th day of February, 1701-2, by order of Hendrick Vechten, Justice.—The Justice Hendrick Vechten, brings in that the towns men were not well authorised concerning the lying out and defending of our bounds by reason that they have no power to compounde or agree with any of the neighbouring townes, &c.—These are therefore, that the freeholders and inhabitants doe give full power to the said Intrusties, for to agree and compounde with any of the neighbour townes concerning our bounds, and all what our said Intrusties shall doe and agree with them, we shall stand to itt.” This proceeding was recorded by order of the Court of Sessions, on the 13th of May, 1702.

DIFFERENCE WITH BUSHWICK.

The difference as to the bounds of these two towns seems generally to have been contested between individuals. The following is the only general order on record respecting the same:

At a Court of Sessions, held at Flatbush for Kings County, May 10, 1699. "Uppon the desire of the inhabitants of Breucklyn, that according to use and order every three yeare the limmitts betweene towne and towne must be runn, that a warrant or order may be given, that upon the 17th day off May, the line and bounds betwixt said townes of Breucklyn and Boswyck, shall be runn according to their pattents or agrements." Ordered, "That an order should be past according to their request.

DIFFERENCE WITH FLATBUSH.

The dispute between this town and Flatbush, respecting their bounds, appears to have been of more importance than that with any other place, excepting New-York.

At a Court of Sessions, held for the West Riding of Yorkshire, upon Long-Island, the 18th of December, 1678, the following order was made:

“There being some difference between the townes of Flat Bush and Breucklyn concerning their bounds, the which they are both willing to refer to Captain Jaques Corteleou and Captain Richard Stillwell to decide. The Court doth approve thereof, and order their Report to be determinative.”

Messrs. Cortelyou and Stillwell complied with the requisition of the above order as will appear by the following report: but subsequent disputes shew that the same was not “determinative.”

“To the worshipfull Court of Sessions, now sitting at Gravesend, June 21, 1683. These may certiffie that in obedience to an order from said Court, and by consent of both towns of Breucklyn and Flattbush, to runn the line betwixt the said townes which are we underwritten have done and marked the trees betwixt towne and towne, as wittnesse our hands the daye and yeare above written.

JACQUES CORTELYOU,
RICHARD STILLWELL.”

It appears by the following Certificate, that a subsequent survey was made in 1684, of the division line between this town and Flatbush.

“To satisfie whom itt may concerne, that I being with Mr. Jacobus Cortland, about the twentyeth day off November, 1684, imployed by Breuckland and Fflackbush, to vew and run out the line betweene the two towns to the south of the hills found that the line run fformerly by Cpts. Jacques Cortelyou and Mr. Stillwell, is right and just, which wee both being agreed, gave in our approbation of the same.

PHILIP WELLS, Surveyor.”

Staaten-Island, in the County of Richmond, this 4th day of Aprill, 1687.”

The above Certificate was recorded by order of several of the inhabitants of Brooklyn.

At a Court of Sessions for Kings County, held the 4th day of October, 1687, the following proceeding was had:

“Complaint off Jan Oake, and Cornelis Barduff, authorised by the inhabitants of Fflackbush being read against Pieter Cronwer, concerning the building uppon the land in question, betwixt Breucklyn and Fflackbush, Itt is ordered, that none off the partys shall meddle themselves with the said land before the question off the said land shall be finished.”

December 4, 1689. Jooris Bergen, Jan Dorlant and H. Claes Vechte, Commissioners of this town, together with Jurrian Bries, Constable, granted to Jeronimus Remsen, a piece of land lying at Bedford, in lieu of a piece of land which they had formerly sold him, lying at the Port or entrance, and which was claimed by the town of Flatbush.

At a town meeting, held in this town the 11th day of April, 1702, by order of Justices Machiel Hanssen, and Cornelis Seberingh; it was

“Purposed to choise townsmen, in place off George Hanssen, Jacob Hanssen, and Cornelis Van Duyn, by cause their times being past the 29th off this instant. Resolved to prolong the old townsmen’s time to the twenty-fifth off May next, by reason they are in action off lawe with them off Fflackbush, to be tryed this May court.”

The differences between these two towns have been amicably settled, and proper monuments placed on the boundary lines, to prevent, if possible, all future disputes.

DIFFERENCE WITH NEW-UTRECHT.

February 14, 1702. George Hansen, Jacob Hansen and Cornelius Van Duyn, Trustees on the part of the town of Brooklyn, and Cornelius Van Brunt, Peter Cortelyou, and Aert Van Pelt, Trustees on the part of the town of New-Utrecht, entered into an agreement, which, after setting forth the said Trustee's powers to enter into the same, proceeds to say, "that the courses and lines hereafter specified shall be the exact bounds between the said two towns of Brookland and New Utrecht and soe to continue to perpetuity without any alteration; viz. The bounds to begin in the sloott or pond lying and being by and between the house of Agyes Vandyke, of the said towne of Brookland and the house of Thomas Sharax, of the said towne of New-Utrecht, where the water runns into the salt water River, by a certaine fence from thence stretching away south-east one degree southerly, two hundred eighty and eight English rod, to a winter white oake tree markt on the south and north-west side; and from thence running east eight and twenty degrees northerly to a white oake tree, being on the east side of the path leading to New-Utrecht aforesaid, to the Gowanos soe called in the townshipp of Brookland abovesaid, said tree being markt on two sides, and being formerly the old markt tree betweene the said townes, &c."

At the time of the execution of the above-mentioned agreement, the Trustees of the town of Brooklyn, gave a bond to the Trustees of the town of New-Utrecht, in the sum of one thousand pounds "currant money of New-Yorke."—The condition of which Bond or obligation was, "That if the above bounden George Hansen, Jacob Hansen and Cornelius Van Duyne, severally and their severall heires and assigns, doe and shall from time to time and at all times hereafter, well and truly observe, performe and keepe, all and every the covenants, articles of agreements, which on their and every of their parts, are or ought to be observed, performed and kept, contained and specified in and by certain articles of agreements of the date hereof and made betweene the above bounden George Hansen, Jacob Hansen and Cornelius Van Duyn of the one part, and the above-named Cornelius Van Brunt, Peter Cortilleou and Aert Van Pelt of the other part, of, in and concerning the limmitts and bounds of their townes pattents, and that in and by all things according to the true meaning of the said articles of agreement in such wise that no breache be made of the premises in said

articles of agreement by the towne of Brookland aforesaid, at any time or times hereafter, then this obligation to be void and of none effect, otherwise to stand and remain in full force, virtue and power in law.”

In the year 1797, a survey was made of all the bounds of this town, and a map thereof transmitted to the Surveyor General of this state.

REVOLUTIONARY INCIDENTS.

This town had a full share of the military operations during the Revolutionary war; and was for a long time in the possession of the British army. It is covered with the remains of fortifications which were thrown up by the Americans^[14] and English for their defence against each other. In this town was fought the most sanguinary part of the battle of Long-Island, August 27, 1776; which took place on the retreat of the American army within their lines, and the attempt of a portion of them to ford the mill ponds at Gawanos; in which attempt nearly the whole of a Regiment of young men from Maryland were cut off.

Many of the minor events connected with this battle, and the Revolutionary contest, are fast sinking into the shades of oblivion: the compiler has therefore thought proper to give place to the following piece of history, not with an idea, that he can immortalize any event which he relates; but with a hope, that his efforts will call forth some nobler pen to do justice to the memories of many of the almost forgotten heroes of those hard fought battles, and arduous contests. In the battle above-mentioned, part of the British army marched down a lane or road leading from the Brush tavern to Gowanos, pursuing the Americans. Several of the American riflemen, in order to be more secure, and at the same time, more effectually to succeed in their designs, had posted themselves in the high trees near the road. One of them, whose name is now partially forgotten, shot the English Major Grant; in this he passed unobserved. Again he loaded his deadly rifle, and fired—another English officer fell. He was then marked, and a platoon ordered to advance, and fire into the tree; which order was immediately carried into execution, and the rifleman fell to the ground, dead. After the battle was over, the two British officers were buried in a field, near where they fell, and their graves fenced in with some posts and rails, where their remains still rest. But for “an example to the rebels,” they refused to the American rifleman the rites of sepulture; and his remains were exposed on the ground, till the flesh was rotted, and torn off his bones by the fowls of the air. After a considerable length of time, in a heavy gale of wind, a large tree was uprooted; in the cavity formed by which, some friends to the Americans, notwithstanding the prohibition of the English, placed the brave soldier’s bones to mingle in peace with their kindred earth.

August 28, 1776. Before day break, in a very thick fog, General Washington retreated with his army from near the old ferry, Brooklyn, to New-York. As the last boat of the Americans left the shore, the fog dissipated, and the British made their appearance on the hills above the place of embarkation, when a shot or two from an American Battery on the hill near the house of Col. Henry Rutgers, in New-York, compelled the British to desist in their march to the ferry.

A short time after the retreat of the Americans, Captain Hale, of the American army, was dispatched by General Washington, to see if the English had taken possession of his camp at Brooklyn, and what their situation was. This unfortunate young officer was taken by the English and hung as a spy, without even a form of trial; and not allowed a clergyman at his execution. It is believed he was executed somewhere along the Brooklyn shore, to the south-west of the old ferry. In our pity for Major Andre, we have almost entirely lost sight of this meritorious officer, whose claims on our gratitude ought ever to be remembered, in proportion as his sufferings were greater than those of the former.

During the stay of the American army on Long-Island, the head quarters of General Washington were at the house on Brooklyn heights, now owned and occupied by Henry Waring, Esq. The house now owned and occupied by Teunis Joralemon, Esq. was used by the English as a Hospital during the Revolution, and in its vicinity, hundreds of British soldiers and sailors are buried.

Most of the records of this town were destroyed by the English when they came in possession of it after the battle of Long-Island.

In the month of November, 1776, one of the British prison ships, called the Whitby, was moored in the Wallaboght, near Remsen's mills. On board this vessel great mortality prevailed among the prisoners, and many of them died. Those of the prisoners who died from this ship, and from the others, which were afterwards brought to this place, were interred in the hill at the present Navy-Yard; where their remains were found, and in the year 1808, deposited in a vault erected for that purpose. March 1777, two other prison ships anchored in the Wallaboght, one of which bore the name of Good Hope; which vessel in the month of October, in the same year, took fire and was burnt. The prisoners were saved and transferred to the other vessels.—The hull of this ship lies under a dock at the Navy Yard, in this town. In the

month of February, 1778, on a Sunday afternoon, another British prison ship was burnt in the Wallaboght. The hull of this vessel lies in the mud in that Bay. 1778, the Jersey ship of the line, having arrived at New-York, was condemned as unfit for the service, and converted into a prison ship. As such she anchored in the Wallaboght during the month of April, in the same year, together with the Falmouth and Hope, for Hospital ships; where they remained till the close of the Revolutionary war.

October 22, 1779, An act of attainder was passed by the Legislature of this State, against John Rapalje, Esq. of this town, by which his property was confiscated to the use of the State. That part of his property lying within the bounds of the present village of Brooklyn, was on the 13th of July, 1784, sold by the Commissioners of Forfeitures, to Comfort, and Joshua Sands, Esqrs. for £12,430.

In the year 1780, the British being apprehensive of an attack from the American army under General Washington, commenced fortifying the high grounds about Brooklyn; which works they continued until the peace in 1783. In this town the British had their army yard, where their forage department, and blacksmith's shops, &c. were kept. The entrance to this yard was near the junction of Main-street with Fulton-street, in the present village of Brooklyn.

During the Revolution, this place was much resorted to by the officers of the English army, and the fashionables of the day, as a scene of amusement. In the Royal Gazette of August 8th, 1781, published at New-York, Charles Loosley advertises a Lottery of \$12,500, to be drawn at "Brooklyn Hall." The same paper contains the following advertisement: "Pro bono publico. Gentlemen that are fond of fox hunting, are requested to meet at Loosley's Tavern, on Ascot Heath, on Friday morning next, between the hours of five and six, as a pack of hounds will be there purposely for a trial of their abilities: Breakfasting and Relishes until the Races commence.—At eleven o'clock will be run for, an elegant saddle, &c. value at least twenty pounds, for which upwards of twelve gentlemen will ride their own horses.—At twelve, a match will be rode by two gentlemen, Horse for Horse.—At one, a match for thirty guineas, by two gentlemen, who will also ride their own horses.—Dinner will be ready at two o'clock, after which, and suitable regalements, racing and other diversions, will be calculated to conclude the day with pleasure and harmony. Brooklyn Hall, 6th August, 1781."

Lieutenant Anberry, in a letter from New-York, to a friend in England, dated October 30th, 1781, says, “on crossing the East River from New-York, you land at Brooklyn, which is a scattered village, consisting of a few houses. At this place is an excellent Tavern, where parties are made to go and eat fish; the landlord of which has saved an immense fortune this war.” The public house referred to in the above advertisements, and letter, was the same house, which after the Revolution, and in the Compiler’s recollection, was called the “Corporation House.” It was a large, gloomy, old fashioned, stone edifice; and was destroyed by fire, September 23d, 1812.

This town was left by the British troops, the same day that they evacuated New-York.

ANCIENT GOVERNMENT.

The first public officer appointed by the Dutch Government for this town after its settlement in 1625, was a “Superintendent,” whose duties were to preserve the peace, and regulate the police of the town. A few years after the office of Superintendent was abolished, and the offices of Schout, Secretary, and Assessor, created; these officers were also appointed by the Governor. In 1646, the town having considerably increased, the inhabitants were permitted to elect two magistrates; subject, however, to the approval or rejection of the Governor. These magistrates had increased powers: they were authorised to give judgment in all cases as they might think proper; provided that the judgment so given be not contrary to the charter of New-Netherland. Subsequently this Town Court was new modelled by the Dutch Government, and its power and authority more clearly defined.

The inhabitants suffering very much under the arbitrary exercise of power on the part of the government, frequently remonstrated against the same. Finally a convention of delegates from this, and the other towns under the Dutch government assembled at New Amsterdam, November 26th, 1653, on an invitation from the Governor. Where they, on the 11th of December, following, entered into a remonstrance against the exclusion of the people from their share in legislation, and generally against their mode of government. The Governor and his Council sent them no answer, but entered one on the minutes; in which they denied the right of this town, Flatbush, and Flatlands, to send deputies, and protested against the meeting, notwithstanding the same was held at the Governor’s request. Entertaining a just sense of the responsibility attached to them, the deputies made another, but ineffectual attempt, to obtain a recognition of their rights, and on the 13th of the last mentioned month, presented another remonstrance, in which they declared, that if they could not obtain them from the Governor and Council, they would be under the necessity of appealing to their superiors, the States General.—The Governor in a fit of anger dissolved their meeting, and sent them home.

In 1654, it appears that the country was very much infested with robbers; to disperse whom, April 7, 1654, the magistrates of this town, together with those of Midwout and Amersfort, united in forming a company of soldiers

to act against “robbers and pirates,” and determined that there should be a military officer in each town, called a Sergeant.

In order to prevent the depredations of the Indians, the Governor in 1660, ordered the inhabitants of Brooklyn to put the town in a state of defence; and commanded the farmers to remove within the fortifications, on the pain of forfeiting their estates.^[15]

For the first two or three years under the English government, the magistrates of this town were but temporary officers. Nearly all that we know about the government previous to 1669, is, that Town Courts were established in this Colony.—The inference would be, that as this town was granted “all the rights and privileges belonging to a town within this government,” a town Court was also organized here.

The Town Clerk of this town was appointed by the Governor, and confirmed by the Court of Sessions, as will appear by the following record: At a Court of Sessions held at Gravesend for the West Riding of Yorkshire upon Long-Island, December 15, 1669. “Whereas Derick Storm presented an order from his Hon. the Governor, for the approbation of the Court of Sessions, to allow him to be towne clerk of Breucklen, taking his oath, the Court having allowed thereof, and doe hereby confirme him of Clerke of the said towne.”

In the year 1669, the first mention is made in the records of the “Constable of Breucklen;” which office at that period was held by Michael Lenell. The duties of constable as laid down in the Duke’s laws were, holding town courts with the overseers, and with them making assessments, &c. whipping, or punishing offenders, raising the hue and cry after murderers, manslaughterers, thieves, robbers, burglarers; and also to apprehend without warrant such as were overtaken with drink, swearing, Sabbath breaking, vagrant persons, or night walkers; “provided they bee taken in the manner, either by the sighte of the constable, or by present informacon from others; as alsoe to make searche for all such persons either on ye Sabbath daye, or other, when there shall bee occasion in all houses licensed to sell beere or wine, or any other suspected or disordered places, and those to apprehend and keepe in safe custody till opportunity serves to bring them before the next Justice of ye Peace for further examinacon.” The Constable was chosen out of the number of Overseers, whose term of service had expired.

The following is a list of the Constables of Brooklyn, from 1669 to 1690:

- 1669. Michael Lenell.
- 1671. Lambert Johnson.
- 1675. Andries Juriaensen.
- 1676. Cornelius Corsen.
- 1678. Thomas Lambertse.
- 1679. John Aeresen.
- 1680. Andries Juriaensen.
- 1682. Martin Ryersen.

Brooklyn and Newtown were ordered to make a new choice according to law.

- 1683. Jan Cornelis Dam.
- 1684. Thomas Ffardon.
- 1687. John Aertsen.
- 1688. Volkert Andriese.
- 1689. Jacobus Beavois.
- 1689. Jurian Bries.
- 1690. Jurian Hendrickse.

Shortly after the conquest of this Colony by the English from the Dutch, the towns of Brooklyn, Bushwyck, Midwout, or Flatbush, Amersfort, or Flatlands, and New-Utrecht, were formed into a separate district for certain purposes, by the name of the “Five Dutch towns.” A Secretary was specially appointed for these five towns, whose duties appear to have been confined to the taking acknowledgment of transports, and marriage settlements, and proof of wills, &c. This office in 1674, was held by “Nicasius De Sille, in the absence of Sr Ffrancis De Brugh.” This same Mr. De Sille, was in authority under the Dutch government, in the year 1658, as Schout of the city of New-Amsterdam. He was styled, “Heer Nicasius De Sille.” There was no uniformity in the title of those acknowledging officers of the Five Dutch towns. In 1675, Machiel Hainelle exercised that office, and styled himself “Clerk.” In the same year the Court of Sessions for this Riding, after setting forth the appointment of Hainell, and calling him “Secretary,” said, “It is the opinion of the Court that for what publique or private business he shall doe he ought to have reasonable satisfacon.”^[16]

There were also in this town, officers, who were called “Overseers.” The Duke’s Laws provide for their appointment in the following manner. “Overseers shall be eight in number, men of good fame, and life, chosen by the plurality of voyces of the freeholders in each towne, whereof foure shall remaine in their office two yeares successively, and foure shall be changed for new ones every yeare; which election shall preceed the elections of Constables, in point of time, in regard the Constable for the yeare ensuing, is to bee chosen out of that number which are dismist from their office of Overseers.”

The following is a copy of the oath which was administered to the overseers elect.

“Whereas you are chosen and appointed an Overseer for the Towne of Breucklen you doe sweare by the Ever-living God, that you will faithfully and diligently discharge the trust reposed in you, in relation to the publique and towne affaires, according to the present lawes established, without favour, affection or partiality to any person or cause which shall fall under your cognizance; and at time when you shall bee required by your superiors to attend the private differences of neighbours, you will endeavour to reconcile them: and in all causes conscientiously and according to the best of your judgment deliver your voyce in the towne meetings of Constable and Overseers. So helpe you God.” These officers were commonly sworn by the Court of Sessions; but in the year 1671, the Constable of Newtown objected to the Court’s swearing the overseers of that town, “alledgeinge that accordinge to the amendments of the law iff special occation required, itt is in the power of the Constable to sweare them, otherwise not, which is left to his Honor the Governor to decide.” The inhabitants of the town for which the overseers were elected were authorised to determine by a major vote whether the said overseers should, on admission to office, take the oath prescribed as above; and in case the said overseers were not sworn, it was a legal objection against their proceedings on the part of any person prosecuted in their court, unless the overseers immediately on objection being made, took the oath, which the Constable was permitted to administer.

It was the duty of the overseers, together with the Constable, to hold Town Courts, for the trial of causes under £5. Their other duties are contained in the following summary. On the death of any person, they were

to repair with the Constable, to the house of the deceased, and inquire after the manner of his death, and of his will and testament; and if no will was found, the Constable in the presence of the Overseers was, within 48 hours, to search after the estate of the deceased, and to deliver an account of the same in writing, under oath, to the next Justice of the Peace. They, together with the Constable made all assessments. If any Overseer died during his term, the rest of the Overseers by a major vote, made choice of another in his place; and if the person so chosen refused to serve, he forfeited the sum of £10, towards defraying the town charges. They were to settle the bounds of the town, within twelve months after the bounds were granted. They had the power of regulating fences. They were authorised together with the Constable to make choice of two out of the eight overseers of Church affairs.

They and the Constable, were frequently to admonish the inhabitants “to instruct their children and servants in matters of religion, and the lawes of the country.” They, with the Constable, appointed an officer “to record every man’s particular marke, and see each man’s horse and colt branded.” The Constable and two of the Overseers were to pay the value of an Indian coat for each wolf killed; and they were to cause the wolf’s head to be “nayed over the door of the Constable, their to remaine, as also to cut of both the eares in token that the head is bought and paid for.”

The following is the only list that the Compiler could obtain of the Overseers of this town.

1671. Frederick Lubertse and Peter Perniedeare.

1675. John Peterson Mackhike, and Jerome De Rapostelley.

1676. Tunis Guis Bergen, and Thomas Lambertson.

1679. John Harrill, and Martyn Reyandsen.

1680. Symon Aeresen, and Michael Harsen.

1683. John Aeresen, and Daniel Rapellie.

In the year 1683, the “Overseers” were changed to “Commissioners.” The “act for defraying the publique and necessary charge of each respective citty, towne, and county throughout this province; and for maintaining the poore and preventing vagabonds.” Passed by the General Assembly of this colony, November 1st, 1683, provides—“That annually and once in every yeare there shall be elected a certaine number out of each respective citty, towne, and county throughout this province; to be elected and chosen by the

major part of all the freeholders and freemen; which certaine number so duely elected shall have full power and authority to make an assessment or certaine rate within their respective cittys, townes and countys annually, and once in every yeare, which assessment and certain rate so established as aforesaid, shall bee paid into a certaine Treasurer, who shall be chosen by a major part of all the freemen of each respective citty, towne, and county; which Treasurer soe duly chosen, shall make such payment for the defraying of all the publique and necessary charges of each respective place above-menconed, as shall bee appointed by the commissioners, or their President, that shall be appointed in each respective citty, towne, and county within this province, for he *supervising the publique affaires and charge* of each respective citty, towne and county aforesaid.” And the said act proceeds further to say, “And whereas it is the custome and practice of his Majesties realme of England, and all the adjacent colonyes in America, that every respective county, citty, towne, parrish, and precinct, doth take care and provide for the poore who doe inhabit in their respective precincts aforesaid; Therefore it is enacted, &c. That for the time to come the respective commissioners of every county, citty, towne, parish, precinct aforesaid, shall make provision for the maintainance and support of their poore respectively.”^[17]

The following is a list of the Commissioners of this town from 1684, to 1690, inclusive.

1684. Thomas Lambertsen, Randolph Emans, and John Aeresen.

1685. Tunis Guis Bergen, and Daniel Rapalie.

1686. Michael Hansen, and Jeromus De Rapalie.

The town made choice of Hansen and De Rapalie; and were ordered by the Court of Sessions to make a new selection by the 12th of April, 1686, and return the same to one of the Justices of the Peace for Kings County.

1687. Adriaen Bennet, Thomas Lambertsen, and Tunis Guysbert.

The Court of Sessions ordered the town to make choice of a new Commissioner in the place of Tunis Guysbert; which they according did, and elected Jan Gerritsen Dorland.

1688. Simon Aertsen, Micheal Hansen, and Claes Bareense.

The Court of Sessions refused to swear Michael Hansen.

1690. Joris Hansen, Hendrick Claasen, and Jan Gerbritse.

The office of "Commissioner" continued until 1703, when a "Supervisor" was elected. The Supervisors of Kings County had their first meeting on the first Tuesday of October, 1703; at which meeting Captain Joras Hansen was the Supervisor from Brooklyn. The duty of the Supervisors was, "to compute, ascertain, examine, oversee and allow the contingent, publick, and necessary charge of each county." Two assessors were also elected for this town, whose names were, Peter Garrabrantse, and John E. Bennet; and one Collector. This is not the first mention of the assessors and collectors of this town in our County Records. In 1688, Michael Hansen, and Daniel Rapalie were chosen assessors, for the purpose of assessing this town's proportion of a tax of £308 8s 0d, which was imposed on Kings County. It is the opinion of the Compiler, that these were distinct officers from the Commissioners, whose duty it was to assess the ordinary rates; and that these assessors were but temporary officers, appointed to assess this particular tax. In 1699, Jan Garretse Dorlant is mentioned as Collector of Brooklyn; and in 1701, John Bybout held the same office.

In 1691, a majority of the freeholders of the town were empowered to make orders for the improvement of their public lands; and annually to elect three surveyors of highways. The duties of these surveyors were to amend and lay out highways and fences. The town meeting at which these orders were made, and officers elected, were held by the direction, and under the superintendence of one or more justices of the peace.

November 8, 1692. The court of sessions for Kings county, ordered that each town within the county, should erect "a good pair of stocks, and a good pound;" and that the clerk of the court should issue a warrant to the constable of every town, requiring them to see this order complied with "at their peril." The following is a list of the constables of this town, from the new organization of the colony in 1691, to 1711, as far as the compiler has been able to ascertain the same:

1693. Volkert Brier.

1697. Volkert Brier.

1698. Jacob Hansen. [This man was complained of by the last constable for not making his appearance at court; and the sheriff was ordered to summon him to appear at the next court.]

1699. Jacobus Beauvois.

1700. Cornelius Verhoeven.

- 1701. Jacob Verdon.
- 1702. Thomas Davies.
- 1703. Thomas Davies.
- 1704. William Brower.
- 1705. Jacob Ffardon. [This constable refused to call a town meeting in 1706, in compliance with the requisitions of a warrant he had received from Justice Ffilkin, for the election of town officers; and the inhabitants complained of him to the court of sessions, who ordered that a town meeting should be held for the election of town officers, and that Ffardon should hold over until a new constable was elected and sworn in his stead.]
- 1707. Abram Sleghter.
- 1708. Cornelius Collier.
- 1709. William Brower.
- 1711. Thomas Davies.

For some time previous and subsequent to the year 1693, the colony was in a very disordered state, arising probably from its new organization after the revolution in Great Britain.

At the same period, both the civil and military governments in this town and also in the county, were very unpopular. In order to support their authority, the justices of the peace resorted to the exercise of very arbitrary measures: arresting and confining many persons under the pretence of their having uttered scandalous words against them, and the government; by which proceedings they completely alienated the people's affections, and exasperated them to such a degree that they committed many excesses: all which will appear by the following extracts from the records:

"October 11, 1693, at a meeting of the justices of Kings county, at the county hall. Present, Roeleff Martinse, Nicholas Stillwell, Joseph Hegeman, and Henry Ffilkin, esqrs. justices. John Bibout, of Broockland, in the county aforesaid, we aver being committed by the said justices to the common jail of Kings county, for divers scandalous and abusive words spoken by the said John against their majesties justices of the peace for the county aforesaid, to the contempt of their majesties authority and breach of the peace; the said John having now humbly submitted himself, and craves pardon and mercy of the said justices for his misdemeanour, is discharged,

paying the officer's fees, and being on his good behaviour till next court of sessions, in November next ensuing the date hereof."

In another instance, during the same year, in the month of October, in the town of Bushwyck, a man named Urian Hagell, was imprisoned for having said, on a training day, speaking jestingly of the soldiers, "Let us knock them down, we are three to their one." The justices called these "mutinous, factious, and seditious words;" which, with the like, appear to have been favourite terms with them. Again, in the same month and year, Hendrick Claes Vechte, of the town of Brooklyn, was imprisoned by the justices, on a charge of "raising of dissension, strife, and mutiny, among their majesties subjects." And May 8, 1694, two women of Bushwick were indicted at the sessions, for having beat and pulled the hair of Captain Peter Praa, whilst at the head of his company of soldiers on parade. One of them was fined £3, and the cost, £1 19s. 9d.; and the other 40s. and the cost, £1 19s. 9d. In the last mentioned year, (1694) Volkert Brier, constable of Brooklyn, was fined £5, and the costs of court amounting to £1, by the sessions, "for tearing and burning an execution directed to him as constable."^[18] Brier afterwards petitioned the governor to have the fine remitted; a copy of which petition is in the appendix, marked C.

This town with respect to legal matters was under the jurisdiction of the court of sessions held at Gravesend, for the West Riding of Yorkshire, upon Long-Island,^[19] until the year 1683; when an act was passed by the first legislative assembly of this colony, dividing the province into counties, by which the ridings were abolished. The court however continued to be held at Gravesend until 1686, when it was removed to Flatbush, in conformity to an act of the colonial assembly, passed in the year 1685. This town continued under the jurisdiction of that court, and the court of common pleas, which was afterwards established, until the close of the revolutionary war. At the close of the war the courts were re-organized, and this town still continues under their jurisdiction.

PRESENT GOVERNMENT.

In 1816 the village of Brooklyn was erected out of the town, and constituted a distinct government; thereby forming an *imperium in imperio*.

The present government both of the town and village, approach as near a pure democracy as that of any other place in this state. No business of importance is undertaken without first having the sanction of a public meeting. Here these sterling principles, that all power emanates from the people, and that public officers are but public servants, are fully recognized, and acted upon.

This head the compiler will divide into two divisions, in order to avoid confusion: First, the Town Government, and second, the Village Government.

First—the Town Government.

The government of the town is administered by

A *Supervisor*, elected by the people, at the annual town-meeting, on the first Tuesday of April. The duties of this officer are principally confined to the apportionment of taxes, presiding at elections, &c. He is also ex officio a commissioner of excise for granting tavern licenses in the town, and the general guardian of the town rights. There is no salary attached to this office: the supervisor receives a compensation of two dollars per day, for attending the general meeting of the supervisors of the different towns in the county, and a trifling amount for granting licenses. The present supervisor is William Furman, esq.

A *Town Clerk*, also elected by the people. The duties of this officer are to call special town meetings on the request of twelve freeholders, record the proceedings of town meetings, and preserve the records of the town. In 1698, Jacob Vandewater, town clerk of this town, received the sum of £6 5s. for two years and six months salary.^[20] In 1822, in order to make the town clerk's salary in some degree proportionate to the increase of business, the town voted him a salary of \$50. In 1824, the town clerk's salary was increased to \$75. The office is at present held by John Doughty, esq. who has been successively elected since the year 1796.

Five *Assessors*, also elected by the people—whose duties are to assess all real and personal estate liable to taxation within the town, and to forward such assessment to the supervisors, that they may apportion the amount of tax on the same. The present assessors are Messrs. John S. Bergen, Richard Stanton, John Spader, Joseph Moser, and Andrew Demarest. Their compensation is one dollar and twenty-five cents per day during the time they are employed in making and completing the assessment.

There are also elected two *overseers of the poor*, Messrs. William Cornwell, and Isaac Moser; one *constable and collector*, Mr. John M'Kenney; two *constables*, Messrs. John Lawrence, and Samuel Doxsey; and several other officers, whose names and duties will be set forth in the subsequent parts of this work.

The judicial business of this town is at present transacted by three *justices of the peace*, viz. John Garrison, John G. Murphy, and Samuel Smith, esqrs. These magistrates are appointed by the judges of the common pleas, and the supervisors of the county.

Second—the Village Government.

April 12, 1816, the village of Brooklyn was incorporated by an act of the legislature of this state. By this act the freeholders and inhabitants are authorized annually to elect, on the first Monday of May, “Five discreet freeholders, resident within the said village, Trustees thereof;” and these trustees are authorized to appoint a president and clerk. The first trustees, Messrs. Andrew Mercein, John Garrison, John Doughty, John Seaman, and John Dean, were appointed by the legislature, and continued in office until the first Monday of May, 1817; when the first election was made by the people, and they made choice of Messrs. William Furman, Henry Stanton, William Henry, Tunis Joralemon, and Noah Waterbury. The present trustees are Messrs. Joshua Sands, John Doughty, Joseph Moser, John Moon, and Samuel James. Joshua Sands, esq. president, and John Dikeman, esq. clerk of the board. The president previous to 1824 received no salary; at present his salary is \$300. The clerk formerly received a salary of \$100, which in consequence of the great increase of business is now raised to \$200. The powers of the trustees are principally “to make, ordain, constitute, and publish, such prudential by-laws, rules and regulations, as they from time to time shall deem meet and proper; and such in particular as relate to the public markets, streets, alleys, and highways of the said village; to draining,

filling up, levelling, paving, improving, and keeping in order the same; relative to slaughter-houses, houses of ill fame, and nuisances generally; relative to a village watch, and lighting the streets of said village; relative to restraining geese, swine, or cattle of any kind; relative to the better improvement of their common lands; relative to the inspection of weights and measures, and the assize of bread; relative to erecting and regulating hay-scales; relative to the licensing of public porters, cartmen, hackney coachmen, gaugers, weigh-masters measurers, inspectors of beef and pork, of wood, of staves and heading, and of lumber; relative to public wells, pumps, and reservoirs or cisterns of water to be kept filled for the extinguishment of fires; relative to the number of taverns or inns to licensed in said village; and relative to any thing whatsoever that may concern the public and good government of the said village; but no such by-laws shall extend to the regulating or fixing the prices of any commodities or articles of provision, except the article of bread, that may be offered for sale.” The powers of the trustees, in opening, regulating, and widening streets, are enlarged and defined by an act passed by the legislature of this state, April 9, 1824.

The board of trustees have the appointment of several officers. The following is a list of the names of the officers at present holding under them.

John Lawrence, Collector.	
Samuel Watts,	
John Titus,	
Andrew Tombs,	—Weighers
Robert W. Doughty,	
Burdet Striker, Measurer.	
William A. Sale, Measurer of Lime.	

Three village Assessors are also elected by the people, for the purpose of making an assessment on which to apportion the village tax. The present assessors are Losee Van Nostrand, Gamaliel King, and John D. Conklin.

The Trustees, by an act passed April 9th, 1824, are constituted a Board of Health. The President and Clerk of the Trustees are ex-officio President and Clerk of the Board of Health. The salary of the President of this Board is \$150.

A Health Physician is appointed by the Board of Health; which office is at present held by Dr. J. G. T. Hunt, with a salary of \$200.

The duties of the Board relate to the general conservation of the Health of the village.

As early as 1809, during the prevalence of the yellow fever in this town, the inhabitants met together in consequence of repeated solicitations from the Common Council of New-York, and after stating in their proceedings, that “reports prevailed, that disease exists to an alarming extent in the town of Brooklyn,” they appointed the following gentlemen a committee “for the purpose of inquiring into the state of the health of the inhabitants of said town, and to act as the case in their opinion may require,” viz. William Furman, John Garrison, Burdet Stryker, Henry Stanton, and Andrew Mercein. A sum of money was raised by subscription to meet the expenses of this Committee.

In the year 1819, the Trustees, although not strictly invested with power, yet feeling the necessity of acting with some degree of energy, in order to quiet the fears of the inhabitants, arising from reports of the existence of a pestilential disease in New-York, published an address; in which they state, “that during this season of alarm, they have not been unmindful of that part of their duty incumbent on them as a *Board of Health* for the village,” and that “measures have been taken to obtain from time to time, a report of the state of health throughout the village, that the inhabitants may be early apprised of any change affecting their welfare.”

PUBLIC BUILDINGS AND INSTITUTIONS.

This head will be divided into three divisions—first, Churches; second, Markets; and third Public Institutions.

First, Churches.

The first Church established in Kings County was, October 13, 1654, when the Rev. Joannes Theodorus Polhemus, a minister of the Dutch Reformed Church, was *permitted* by Governor Stuyvesant, to preach at Midwout, (Flatbush) and Amersfort, (Flatlands).^[21] The congregation was gathered at this time; but the order of Governor Stuyvesant for building the Church is dated December 15, 1654. February 9, 1655, the Governor ordered the inhabitants of Brooklyn and Amersfort, which at that period, together with Gravesend, were one congregation, to cut timber for the erection of the Church at Midwout; which building was to be 60 feet in length, 28 feet in breadth, and 14 feet in height below the beams.

In order to accommodate the four towns of Gravesend, Amersfort, Midwout, and Brooklyn, the Governor ordered that Mr. Polhemus should preach every Sunday morning at Midwout, and Sunday afternoons alternately at Amersfort and Brooklyn.

In the year 1659, the inhabitants of this town applied to Governor Stuyvesant for permission to call a minister for their congregation, assigning as a reason for their application, the badness of the road to Flatbush, the difficulty of attending divine service at New-York, and the extreme old age and inability of the Rev. Mr. Polhemus to perform his services at Brooklyn.

The Governor deemed the request reasonable, and sent Nicasius de Sille, Fiscal of New-Netherland, and Martin Kregier, Burgomaster, of New-Amsterdam, to this town, as a committee of inquiry, who reported in favour of the application; whereupon the request of the inhabitants was granted. The inhabitants prepared a call for the Rev. Henry Solinus, alias Henricus Selwyn, from Holland, who was approved of by the classis of Amsterdam, on the 16th of February, 1660, when the classis also gave the Rev. Mr. Solinus a dismissal, wishing him a safe and prosperous journey by land and by water to his congregation in the New-Netherland. The time of the arrival of this minister is not known. He was installed in his church on the

3d of September, 1660, in the presence of the Fiscal, and Burgomaster Kregier, by the order of Governor Stuyvesant, who appears to have been at the head of the ecclesiastical, as well as the civil and military government of the colony.

On the 7th of September, 1660, a letter was written to the Rev. Mr. Polhemus, informing him of the installation of the Rev. Mr. Solinus in the Church of Brooklyn, and thanking him for his labours and attention to the Congregation. The letter was sent by a respectable person, to whom the Rev. Mr. Polhemus returned his thanks for the attention which the Church at Brooklyn had paid him, and furnished the messenger with a list of the names of the Church members, twenty-five in number.

Mr. Solinus' salary was 600 guilders per annum, equal to \$200. Three hundred guilders of which was to be paid by Brooklyn, and three hundred by Father land, (Holland). Some time after, the inhabitants of Brooklyn objected to raising their proportion of the salary; and May 25, 1662, petitioned the Governor, that Mr. Solinus should reside among them; setting forth as a reason, that if their minister resided with them more people would go to church, and they would be better able to raise the salary. Governor Stuyvesant, in order to accommodate this dispute, proposed to pay 250 guilders towards Mr. Solinus' salary, on condition that he would preach in the Bouwery on Sunday afternoons.—This arrangement appears to have been entered into, for a short time after Mr. Solinus preached at the Bouwery half the time.

The Indians having on the 7th of June, 1663, attacked the town of Esopus, burnt the same, and destroyed many of the inhabitants, and took many prisoners; the event was communicated by Governor Stuyvesant to the church at Brooklyn, in the following manner.

“As a sorrowfull accident and wilfull masacre has been committed by the Esopus Indians, who have with deliberate design under the insidious cover of friendship, determined to destroy Esopus, which they effected on the 7th instant, killing and wounding a number of the inhabitants, and taking many prisoners, burning the new town, and desolating the place. Whereupon the congregation is directed and desired by his Excellency the Governor General to observe and keep the ensuing Wednesday as a day of fasting, humiliation and prayer to the Almighty, hoping that he may avert further calamities from the New-Netherlands, and extend his fatherly

protection and care to the country. And it is further ordered, that the first Wednesday in every month be observed in like manner. By order of the Director General, and Council, &c. Dated at Fort Orange, June 26, 1663.” Wednesday the 4th of July, 1663, was observed as a day of thanksgiving on account of a treaty of peace having been made with the Esopus Indians, and the release of the inhabitants who had been taken prisoners; and also for the success obtained over the British, who attempted with flying colours to take possession of all Long-Island for the King of England, which was prevented by the timely arrival of the Dutch fleet.

On the 23d of July, 1664, the Rev. Henry Solinus took leave of his congregation and sailed in the ship Beaver for Holland. After his departure, Charles Debevoise, the schoolmaster of the town, and sexton of the church, was directed to read prayers, and a sermon from an approved author, every Sabbath day in the church, for the improvement of the congregation, until another minister was called.

The first Dutch church in Brooklyn was built in the year 1666, although a minister had been settled to preach here for some years previous.—A second church was erected on the site of that built in 1666; which second church continued standing until about 1810, when a new and substantial church was erected on Joralemon-street, and the old one taken down. This old church was a very gloomy looking building, with small windows, and stood in the middle of the highway, about a mile from Brooklyn ferry. In removing it the workmen discovered the remains of a Hessian officer, who had been buried there in his uniform, during the Revolutionary war.

The Dutch congregations on this Island formed but one church, although they had different consistories.

The ministers under the Dutch government were not permitted to marry any persons without making the marriage proclamation on three succeeding Sabbaths in their churches. The same practice was observed after the Colony came under the British government. The last mentioned government however sold marriage licenses, which were granted by the Governor’s Secretary in New-York, for the sum of eight dollars each. The inhabitants generally preferred purchasing a marriage license, and thus contributed to the revenue of the Governor and Secretary.

During the ministry of the Rev. Mr. Solinus, the marriage fees were not the perquisite of the Minister, as appears by his account rendered by him to

the Consistory, on the 29th of October, 1662, when he paid over to the consistory the sum of 78 guilders and 10 stivers, for fourteen marriage fees received by him.

The following is a list of ministers of the Dutch Reformed Church, who officiated in the church on this Island, (with the exception of Polhemus, and Solinus,) taken from a manuscript of the Rev. Peter Lowe.

Joannes Magapolensis, probably died	1668.
Casperus Van Zuren, probably died	1677.
Clark, probably died	1695.
William Lupardus, probably died	1709.
Bernardus Freeman, ^[22] from 1702, to	1741.
Vincintius Antonides, from 1715, to	1744.
Joannes Arondeus, probably died,	1742.
Anthony Curtenius, from 1730, to	1756.
Ulpianus Van Sinderen, from 1747, to	1796.
John Casper Rubel, from 1760, to	1797.
Martinus Schoonmaker, from 1785, to	1824.
[This venerable pastor was 88 years of age at his death; and a short time previous, officiated in four congregations.]	
Peter Lowe, from 1787, to	1818.

In the month of April, 1708, fifty-seven of the inhabitants of Brooklyn, entered into an agreement (which is written in Dutch) to call a minister from Holland, to preach in the church of this town. The elders of the church at that time were, Daniel Rapalie, and Jores Hanse.

The salary of the Clerk of the Church in this town was formerly raised by a tax on the whole town. At a town meeting, held February 1, 1568, It was resolved, that the sum of £20 10s. should be raised, and paid into the hands of the “church masters” for “the widow of Hendrick Sleght, ffor 1 year and 8 months salary, and being Clarke off the church.”

The following singular proceeding may be amusing to some readers, and will serve to shew to what extremes, both the people and the magistrates carried themselves in former times. Hendrick Vechte, Esq. a Justice of the Peace, was presented at the Kings County Sessions, May 14, 1710, for coming into the Brooklyn Church, on Sunday, August 10, 1709, “with his

pen and ink in his hand, taking of peoples names, and taking up one particular mans hat up, and in disturbance of the minister and people in the service of God, &c.” Vechte’s plea was that in obedience to an order of the Governor he did go into the church as alledged, “to take notice of the persons that were guilty of the forcible entry made into the Church, that by Abram Brower, and others, by breaking of said Church doore with force and arms, forcibly entering into said Church, notwithstanding the forewarning of Mr. Freeman the minister, and his people to the contrary.” The Court found that Justice Vechte was not guilty of a breach of the peace, and discharged him. It must be remembered that Justice Vechte was a member of the Court. There was a considerable difference of opinion and many disputes among the inhabitants of this town, and of the County, as to the right of the Rev. Mr. Freeman to preach; into the merits of which controversy, it is not to be expected that the Compiler can enter at this distant day. Excepting the above proceeding of the Court, the only document which the Compiler has been able to obtain relative to this controversy is a letter from Henry Ffilkin, Esq. to the Secretary at New-York, which will be found in the Appendix marked with the letter D.

December 18, 1814, the Trustees of the Dutch Reformed Church of the town of Brooklyn were incorporated. At which time the following gentlemen were officers of the Church.

Martinas Schoonmaker,	—Ministers.
Peter Lowe,	

Elders.

Fernandus Suydam,
Jeremiah Johnson,

Walter Berry,
John Lefferts.

Deacons.

Jeremiah Brower,
Abraham De Bevoise,

Lambert Schenck,
Abraham Remsen.

The present officers of this Church are, Rev. S. S. Woodhull, D. D.
Pastor.

Elders.

Leffert Lefferts,
David Anderson,

Tunis Joralemon,
Nehemiah Denton.

Deacons.

Theodorus Polhemus,
Adrian Hegeman,

James De Bevoise,
Adriance Van Brunt.

September 18, 1785, an “Independent Meeting House,” was incorporated at this place. The officers of which were:

John Matlock, Pastor,
George Wall, Assistant,
John Carpenter, Treasurer,
George Powers, Secretary.

Trustees.

William Bunton, John Emery,
Robert Steath, William Hinson.
Barnard Cordman,

Their place of worship was a frame building on what is now the Episcopalian burying ground in Fulton-street. This congregation continued

but a short time, in consequence of the seceding of its members to the Episcopalian Church, which was soon after established in this place.

The first celebration of Divine Service after the manner of the Protestant Episcopal church, in this town, subsequent to the Revolution, was at the old brick house known as No. 40 Fulton-street, and now owned by Mr. Abiel Titus.

About the year 1787, the Episcopal Church was established in Brooklyn, under the pastoral care of the Rev. Mr. Wright, at the house on the north-east corner of Fulton and Middagh-streets; which house was fitted up with pews, &c.

April 23, 1787, "The Episcopal Church of Brooklyn" was incorporated. The following are the names of the first

Trustees.

Whitehead Cornell,	Joshua Sands,
Joseph Sealy,	Aquila Giles,
Mathew Gleaves,	Henry Stanton,
John Van Nostrand.	

This congregation afterwards came into possession of the place of worship before used by the Independent Congregation, and continued to worship in that edifice until they erected the Stone Church called "St. Ann's Church," on Sands-street.

June 22, 1795. The Episcopal Church in this town was re-organized and incorporated by the name of "St. Ann's Church."

Church Wardens.

John Van Nostrand, and George Powers.

Vestrymen.

Joshua Sands,	Aquila Giles,
Paul Durel,	John Cornell,
Joseph Fox,	Gilbert Van Mater,
William Carpenter,	Robert Stoddard.

The congregation at the same time resolved, that Monday in Easter week should be the time of their future elections for Church officers.

The stone church which was erected on Sands-street, has continued to the present time: but is now in bad repair, in consequence of the walls not having been properly erected. The Vestry passed a vote for erecting a new church to front on Washington-street, the corner stone of which was laid March 31, 1824. The new edifice is fast progressing, and promises to be a great ornament to the place.

The present officers of St. Ann's Church are,

Rev. Henry U. Onderdonk, Rector.

Church Wardens.

William Cornwell, and Joshua Sands.

Vestrymen.

James B. Clarke, John H. Moore,
Robert Bach, Robert Carter,
Adam Tredwell, Losee Van Nostrand,
Fanning C. Tucker, A. H. Van Bokkelen,
William Cornwell, Treasurer.

May 19, 1794, the "First Methodist Episcopal Church" in this town, was incorporated. The Trustees at which period were,

John Garrison, Stephen Hendrickson,
Thomas Van Pelt, Richard Everit,
Burdet Stryker, Isaac Moser.

The present Meeting-house of this denomination is erected on the site of their first place of worship, on Sands-street; and is a neat, plain edifice. The present officers are,

Rev. William Ross, Pastor in charge.

Trustees.

John Garrison, George Smith,
Isaac Moser, Isaac Nostrand,
William Foster, John G. Murphy,
Jacob Brown, R. Van Voris.
Andrew Mercein,
Isaac Moser, Treasurer.

January 12, 1818, The “African Wesleyan Methodist Episcopal Church in the village of Brooklyn,” incorporated.

First Trustees.

Peter Croger, Benjamin Croger,
Israel Jemison, John E. Jackson,
Ceasar Sprong.

The place of worship of this congregation is a frame meeting house situate on High-street.

March 13, 1822. The “First Presbyterian Church of Brooklyn” was incorporated.

First Trustees.

Jehiel Jaggar, Elkanah Doolittle,
Nathaniel Howland, Joseph Sprague,
Silas Butler, Alden Spooner,
John B. Graham, George Hall,
Charles H. Richards.

The corner stone of this church was laid, April 15, 1822. The Church is situate on Cranberry-street; and is a very handsome brick building, something in the Gothic style. The present officers are,

Rev. Joseph Sanford, Pastor.

Elders.

Zechariah Smith, Selden Gates.
Ezra C. Woodhull.

Trustees.

Alden Spooner, George Hall,
Edward Coope, Nathaniel Howland,
Henry W. Warner, Benjamin Meeker,
Elkanah Doolittle, Joseph Sprague,
Silas Butler.

Elkanah Doolittle, President of the Board,
Silas Butler, Clerk, President of the Board,
Nathaniel W. Sanford, Treasurer.

November 20, 1822. “St. James Roman Catholic Church,” incorporated.

First Trustees.

George S. Wise, Jun.	William Purcell,
Peter Turner,	James Rose,
Patrick Scanlan,	Darby Dawson,
William M’Laughlin.	

The corner stone of this Church was laid, June 25, 1822. The edifice is of brick, and approaches nearer to the Gothic architecture than any other building in this town. It is yet unfinished. This is the first Roman Catholic Church erected on Long-Island. The present Trustees are,

—— ———, President.^[23]

Peter Turner, Secretary,
William Purcell, Treasurer;
James Rose,
Darby Dawson,
William M’Laughlin,
Patrick Scanlan.

October 15, 1823. The “First Baptist Church in Brooklyn” incorporated.

Trustees.

Eliakim Raymond,	Elijah Lewis,
John Brown,	Richard Poland,
Charles P. Jacobs.	

March 24, 1824. Rev. William C. Hawley was ordained Pastor of this Church. This congregation have as yet, erected no building for public worship; but assemble for that purpose in the District School room, No. 1.

There are also in this town some of the denomination of Friends, and a small congregation of Universalists; neither of which have established places of public worship. The Universalists are under the pastoral care of the Rev. William Mitchill, and assemble for Divine service in the District School room, No. 1.

In the present year, this town purchased of Leffert Lefferts, Esq. a small farm situate at the Wallaboght; a portion of which was set off for a burying ground, and divided into convenient parcels; which were allotted in the

following manner to the different congregations worshipping in the town, viz.

- | | |
|------------------------|----------------------------|
| No. 1. Dutch Reformed, | 5. Methodist Episcopalian, |
| 2. Friends, | 6. Universalist, |
| 3. Presbyterian, | 7. Episcopalian, |
| 4. Roman Catholic, | 8. Baptist, |
| 9. Common. | |

Second, Markets.

A market was established in this town as early as the year 1676, which will appear from the following order of the General Court of Assizes, made in the month of October, 1675. "Upon proposall of having a fayre and Markett in or neare this City. (New-York) It is ordered, That after this season, there shall yearely bee kept a fayre and markett at Breucklen near the ferry, for all grayne, cattle, or other produce of the countrey, to be held the first Munday, Tuesday, and Wednesday, in November; and in the City of New-York, the Thursday, Friday, and Saturday following."

Previous to the year 1814, there were two markets in this place; one of which was situate at the foot of the old ferry-street; and the other at the foot of Main-street. Both these markets were taken down in 1814.

At present we have no public market; the inhabitants are supplied from several butcher's shops for the sale of meat, and stands for vegetables, scattered about in different parts of the village.—The people have been for some time past endeavouring to obtain a public market, and the great difficulty appears to be the location of a proper site. At a village meeting, held June 26, 1824, the sum of \$10,000 was voted to erect a brick market house and Village Hall, with other offices. This amount it was resolved, should be raised by a loan for not less than ten years, at six per cent; and that the proceeds of the market arising from the letting of stalls, &c. should be appropriated to paying the interest of said loan; and that if in process of time there should be a surplus, after paying the interest, the same should be converted into a sinking fund for extinguishing the principal. These resolutions have not as yet been carried into effect.

Third, Public Institutions.

Of public institutions we have not many to boast—they may be strictly confined to one Bank, a Fire Insurance Company, and an Apprentices' Library.

The "Long-Island Bank" was incorporated, April 1st, 1824, with a capital of \$300,000, divided into six thousand shares of \$50 each. The present officers are, Leffert Lefferts, Esq. President, and D. Embury, Cashier.

The "Brooklyn Fire Insurance Company" was incorporated, April 3, 1824, with a capital of \$150,000, divided into six thousand shares of \$25 each. The present officers of this institution are, William Furman, President, and Freeman Hopkins, Secretary.

There is also in this village a branch of the "Equitable Fire Insurance Company"; of which Abraham Vanderveer, Esq. is Agent.

The Apprentices' Library Association, which has been formed but a short time, promises to be of great benefit to the apprentices of the place, by introducing among them, habits of reading and reflection, which, if properly attended to, will enable them to support the honourable character of good citizens.

The Library at present consists of about twelve hundred volumes, which have been presented by different individuals. About one hundred apprentices take books from it, regularly once a week.—This institution was incorporated by an act of the Legislature, passed in November, 1824. The present officers are,

Robert Snow, President; Thomas Kirk, Vice-President; Andrew Mercein, Treasurer; Robert Nicholls, Secretary.

Under this head it may be proper to notice, that there are two Masonic lodges in this town, and a Post office.

Fortitude Lodge, No. 81.—W. Levi Porter, Master.

Hohenlinden Lodge, No. 338.—W. Abiathar Young, Master.

The Post office is kept at No. 97 Fulton-street, by George L. Birch, Esq. Post Master. The mail is carried daily (Sundays excepted) between Brooklyn and New-York, and closes at Brooklyn at 8 A. M. and arrives at 4 P. M.

POPULATION AND INCREASE.

Within a few years this town, and particularly the village has increased very rapidly. In 1814, the town of Brooklyn contained 3805 inhabitants; and in 1816, the town contained 4402 inhabitants. In 1820, the census was as follows, (being almost two thirds of the population of the County.)

White males, under 10 years of age,	876	
do. between 10 and 16	376	
do. between 16 and 26	717	
do. between 26 and 45	961	
do. between 45 and upwards	379	
	—	3309
White females, under 10 years of age,	876	
do. between 10 and 16	398	
do. between 16 and 26	705	
do. between 26 and 45	961	
do. between 45 and upwards	379	
	—	3319
Free blacks,	657	
Slaves,	190	
	<u>7475</u>	
Foreigners not naturalized,	252	
Persons engaged in Agriculture,	264	
do. in Commerce,	67	
do. in Manufactures,	497	

The following account of the population of Kings County at different periods, may not be uninteresting to many readers.

The population of Kings County in 1731 was	2150
	1756 2707
	1771 3623
	1786 3966
	1790 4495
	1800 5740
	1810 8303

In 1706, There were 64 freeholders in the town of Brooklyn. In 1802, their number had only increased to 86, as appears from the list of Jurors at that period. In the year 1800, there were 253 votes given in this town, at a contested election for assemblyman. In 1824, on the same occasion 1013 votes were taken.

At the close of the Revolutionary war, the town of Brooklyn within the bounds of the present village contained 56 buildings. In 1821, the village contained 867 buildings; of which 96 were Groceries and Taverns, and several store-houses.—These store-houses depend principally, on the operation of the Quarantine laws, in the months of June, July and August, for business. On the 23d of July in the same year, there were lying at the wharves in this village, 13 ships, 9 brigs, 8 schooners, and 14 sloops. July 1, 1824, there were lying at the wharves in this village, 8 ships, 16 brigs, 20 schooners, and 12 sloops.

In 1822. 50 dwelling-houses were erected in this village. In 1823, 122 frame dwelling and 32 brick and brick front buildings were erected. January 1, 1824, the village of Brooklyn contained 113 stone, brick and brick front buildings. During the present year 143 frame dwelling-houses have been built in this village.

The town contains 8 Ropewalks, which manufacture 1130 tons of cordage annually; 4 Distilleries; 2 Spirits of Turpentine Distilleries; 1 Glue factory; 1 Chain cable manufactory; 2 Tanneries; 2 White lead works; 1 Whiting manufactory; 1 Glass factory and 1 Furnace for casting iron. The manufacture of Hats is conducted on a large scale in this place.

In the year 1703, a survey was made of “Broocklands improveable lands and meadows within fence,” and the same was found to amount to 5177 acres. At that period the greatest holder of that description of land was Simon Aersen, who owned 200 acres. In 1706, all the real and personal estates of the town of Brooklyn were assessed at £3122 12s. 0d. The tax on which was £41 3s. 7½d and the whole tax of the county £201 16s 1½d. In 1707, the real and personal estates of this town assessed at £3091 11s 0d, The government tax on which, was for the same year £116 7s 3d, payable in two payments; and the whole tax of the county £448 3s 7d. The present year, the real estate in this town was assessed at \$2,111,390. And the personal estate at \$488,690; being considerably more than one half of the

whole value of the county. The State, county and town tax on which amounts to \$6,497 71. At this period there are in the village 1149 taxable persons, and the village tax amounts to \$2625 76, averaging about \$2 29, each taxable person. This village tax includes \$450 raised to meet the expenses of the Board of Health, and is exclusive of all local assessments for opening and improving streets, &c.

The receipts of the overseers of the poor of this town for the year 1823, amounted to \$3108 77, and their expenditures to \$3469 49, leaving a balance of \$360 72 against the town.

On the 22d of March, 1823, there were 54 persons in the Alms-house; 51 persons were admitted during the year ending March 30, 1824. During the same period, 34 were discharged, and 10 died. March 30, 1824, there were in the Alms-house 40 persons, viz. 11 men, 16 women, 5 girls, and 8 boys. In the winter of 1823-4, 93 loads of wood were distributed from this institution among the poor of the town.^[25]

April 21, 1701, a piece of land about 100 feet square, lying within the present bounds of the village of Brooklyn, was sold for £75, "current money of the Province of New-York." 1720 a dwelling-house and lot of ground containing 62 feet front, 61 feet rear, and 111 feet deep, near the ferry, on the north-east side of what is now called Fulton-street, sold for £260, "current money of New-York. In the year 1784, all the property owned by the Corporation of the City of New-York in this town was assessed at £365, New-York currency; which property is now worth \$50,000 at the lowest calculation.

August 30, 1701. John Bybon sold to Cornelius Vanderhove, for £37 10s, the one equal half part of a brewhouse, situate at Bedford, in the town of Brookland, fronting the highway leading from Bedford to Cripplebush; together with one equal half part of all the brewing vessels, &c.

In 1685, a Windmill was erected in this town by John Vannise and Peter Hendricks, for Michael Hainell. There is great reason to believe that this was the first mill erected in this town. August 19, 1689, an agreement was entered into between Cornelius Seberingh of Brookland, and John Marsh of East Jersey, relative to building a water mill on Graver's kill in this town. At present there are in this town seven water mills and two wind mills.—From February 16, 1823, to February 15, 1824, 5825 barrels of superfine flour, 260 barrels of fine flour, and 124 hogsheads of corn meal were inspected in

this county. The most, if not all of which flour and meal was manufactured at the mills in this place.

SCHOOLS, NEWS-PAPERS, AND MORAL CHARACTER.

May 1661, Charles Debevoise was recommended by Gov. Stuyvesant as a suitable person for schoolmaster of this town, and also for clerk and sexton of the church, who was employed and received a good salary.

Immediately previous to the revolutionary war, that part of the town of Brooklyn which is now comprised in the bounds of the village, and for some distance without those bounds, supported but one school, of 19 scholars, five of whom were out of the family of Mr. Andrew Patchen. The school-house was situated on the hill, on property which was then owned by Israel Horsfield, but now belongs to the heirs of Carey Ludlow, deceased.—The teacher was Benjamin Brown, a staunch whig from Connecticut.

District School, No. 1. This school was organized at a public meeting, held Jan. 2, 1816, at which meeting Andrew Mercein, John Seaman, and Robert Snow were elected trustees, and John Doughty clerk of the school. The trustees were appointed a committee to ascertain a proper site for building a school-house, and report the probable expense thereof. At a meeting held January 12, 1816, the trustees reported that they could purchase four lots of ground on Concord street, of Mr. Noah Waterbury, for \$550. The meeting thereupon resolved, that “the sum of \$2000 should be raised by tax on the inhabitants of the said district, to purchase said lots and to build a school-house thereon;” and that in the mean time the “Loisian school be the common school of the said district;” and that “the trustees of the district be authorized to exonerate from the payment of teacher’s wages all such poor and indigent persons as they shall think proper, pursuant to the act of the legislature;” and that “it be recommended by this meeting, that the common school to be taught in this district, be on the Lancastrian plan of instruction.”

In the school of this district, which includes the village of Brooklyn, upwards of 200 children are taught. The price of tuition does not exceed four dollars per annum, and from that amount down to nothing, in proportion to the abilities of the parent. The School District No. 1, at present contains 1607 children between the ages of 5 and 15 years, of whom 1157 go to the public or private schools.

In 1821 there were eight private schools in the village of Brooklyn.

In 1823 the town received from the state \$418 13 for the support of common schools.

The present officers connected with the common schools of the town are

Commissioners. Jordan Coles, Robert Nichols, Josiah Noyes.

Inspectors. Charles I. Doughty, Evan Beynon, Robert Snow.

Trustees of District School No. 1. William Cornwell, Joseph Sprague, Charles I. Doughty.—*Clerk,* Ralph Malbone.

Newspapers.

Four Newspapers have been published in this town in the following chronological order:

June 26, 1799. The first number of the “Courier, and New-York and Long-Island Advertiser,” published by Thomas Kirk, Esq. This was the first newspaper established on Long-Island.

May 26, 1806. The first number of the “Long Island Weekly Intelligencer,” published by Mess’rs. Robinson and Little.

June 1, 1809. The first number of the “Long Island Star,” published by Thomas Kirk, Esq.

March 7, 1821. The first number of the “Long Island Patriot,” published by Geo. L. Birch, Esq.

In the month of November, 1810, proposals were issued by Benjamin F. Cowdrey, & Co. for establishing in Brooklyn a weekly newspaper, to be entitled “The Long-Island Journal, and American Freeman.” For some reason unknown to the compiler this paper was not published.

During the month of May, 1820, Brockholst Livingston, jun. issued proposals for publishing a weekly newspaper in this village, to be entitled the “Long-Island Republican.” Not meeting with sufficient encouragement, this attempt was abandoned.

The only two papers now in existence in this town, are “The Star,” published by Alden Spooner, Esq. and the “Long Island Patriot,” by George L. Birch, Esq.

Moral Character.

It is a delicate subject for a writer to treat of the morals of a people among whom he is a resident, lest by telling the truth too plainly, he awaken

unpleasant feelings in the breasts of some whom perhaps he would not wish to offend. On the other hand, if glaring faults are slightly passed over, or palliated, it calls down on his devoted head all the envenomed attacks of malicious criticism. The compiler, however, flatters himself that neither will be the case in this instance.

The people of Brooklyn, it is true, cannot be considered as rigid in religious matters as the saints of Oliver Cromwell's army, whose very cannon had on the inscription of "O Lord, open thou our lips, and our mouth shall shew forth thy praise!" But they are far from being irreligious; the churches are well filled, religious societies are liberally supported, vice discountenanced; and for the more effectual suppression thereof, in 1815, a society for the suppression of vice and immorality was formed, consisting of many of the most respectable inhabitants of the town. By the exertions of our Sunday school societies, attached to the different congregations, the morals of the younger part of the community have been greatly reformed; and it is highly gratifying to observe the improvement made in the general morals, of the town, in consequence of their benevolent exertions.

FIRE DEPARTMENT.

Although this might with some propriety be placed under the head of *Public Institutions*, the compiler has thought proper to make it a head of itself; and he hopes that the following few historical facts relative to this valuable department, may be useful to such as feel an interest in its progression and improvement.

By an act passed by the legislature of this state, March 15, 1788, “for the better extinguishing of fires in the town of Brooklyn,” the number of firemen was limited to eight, who were nominated and appointed by the freeholders and inhabitants of the fire district, which was comprised within nearly the same bounds with the present village, In the year 1794 the sum of £188 19s. 10*d.* was raised by subscription in this town, for purchasing a fire engine. On the 24th March in the following year, an act was passed by the legislature “for the better extinguishing of fires” in this town; by which act the number of firemen was increased to thirty.

1796. The sum of £49 4s. was raised by subscription for purchasing “a suitable bell for the use of the town of Brooklyn.” This is the present fire bell.

March 21, 1797, an act was passed by the legislature “for the prevention of fires, and for regulating the assize of bread, in the town of Brooklyn.” This act authorised the inhabitants to choose not less than three nor more than five freeholders, who might from time to time make such prudential by-laws as they judged necessary, for the prevention of fires by the burning of chimneys, and for sweeping and otherwise cleansing the same. The inhabitants accordingly met on the second Tuesday of May, in the same year, and appointed Mess’rs. Henry Stanton, John Doughty, Martin Boerum, John Van Nostrand, and John Fisher, to carry into effect the provisions of the above act. In the execution of which duty the persons so appointed ordained, that from and after the 11th day of July, 1797, a fine of ten shillings should be levied on each person whose chimney should take fire through carelessness, or be set on fire for the purpose of cleansing; and that “all penalties shall be received and recovered by the clerk of the fire company for the time being, if he be one of the persons so chosen; if not, the said persons elected shall nominate and appoint one of their number to serve for and receive in the same manner that the clerk is at present

authorised." From 1798 to August 6, 1806, the sum of £20 7s. was received for chimney fines.

For a considerable length of time, this town had but one small fire engine; they subsequently purchased another, which was called No. 2. About 1810, No. 3. now styled the "Franklin," was purchased by the inhabitants of the Fire District. The Fire Department of the village at present consists of four Fire Engines (of which three are new, namely, Nos. 1, 2, and 4,) and a Hook and Ladder Company, viz.

No. 1, "Washington," full complement 30 men, Foreman, Joshua Sutton.

No. 2, "Neptune," full complement 30 men, Foreman, Gamaliel King.

No. 3, "Franklin," full complement 30 men, Foreman, Jeremiah Wells.

No. 4, "Eagle," full complement 30 men, Foreman, George Fricke.

Hook and Ladder Company, full complement 30 men, Foreman, John Smith.

There are also in the Navy Yard, two excellent Fire Engines, well manned, and which, together with those from New-York, generously come to our assistance when ever our place is visited by that dreadful calamity, fire.

The receipts of the Fire Department, from 1794 to 1815, amounted to £898 10s. 1d. and the expenditures from July 7, 1795, to November 15, 1816, amounted to £964 3s. 3d.

The office of Clerk and Treasurer of the Fire Department of this town, was held by John Hicks, Esq. until 1796; at which time John Doughty, Esq. was appointed, who held that office until the incorporation of the village in 1816, when he was appointed Chief Engineer of the Fire Department of the village, which office he held for one year. In 1817, William Furman, Esq. was appointed Chief Engineer, and officiated in that capacity until 1821, when, on the resignation of Mr. Furman, John Doughty, Esq. was again appointed, and continues to hold the office. The present officers of the Fire Department are,

John Doughty, Chief Engineer.

Fire Wardens. Joseph Moser, Edward Coope, Joseph Sprague.

April 16, 1823, an act was passed by the Legislature of this state to incorporate the firemen of this village, by the name of the "Fire Department of the Village of Brooklyn." The act allows this corporation to hold,

purchase, and convey any estate, real or personal for the use of the corporation; provided such real or personal estate shall not at any time exceed the yearly value of \$1000. The following officers were appointed by the act of incorporation, viz.

John Doughty, President.

Joshua Sutton, Vice-President.

Richard Cornwell, Secretary.

Trustees. Jeremiah Wells, Morris Simonson, Michael Trapple, Joseph Moser, George Fricke, Gamaliel King, Simeon Back, Parshall Wells, George L. Birch.

The laudable object proposed by this institution, is to raise a fund for the relief of widows and children of deceased firemen.

By an amendment to the act of Incorporation of the village of Brooklyn, passed April 9, 1824, it is provided, "That all fines and penalties under any by-law of the said village, in relation to the burning of chimneys, and for the preventing and extinguishing of fires, and also, all fines and penalties either under such by-laws, or under any statute of this state, in relation to the manner of keeping and transporting gun-powder within the said village, shall be sued for in the name of the said Trustees, (of the village of Brooklyn) by the fire department of the said village, and when recovered shall be paid to the said fire department, for their own use."

MISCELLANEOUS.

June 7, 1625, Sarah De Rapalje, born in this town. Tradition says that she was the first white child born in the colony. Her parents were Walloons; from whence is derived the name of Wallaboght, or Walloons Bay, where they lived.^[26] She was twice married. Her first husband was Hans Hanse Bergen, by whom she had six children, viz. Michael Hanse, Joris Hanse, Jan Hanse, Jacob Hanse, Brechje Hanse, and Marytje Hanse. Her second husband was Teunis Guysbertse Bogart, by whom she also had six children, viz. Aurtie Bogart, Antje Bogart, Neeltje Bogart, Aultje Bogart, Catelyntje Bogart, and Guysbert Bogart. The account of Sarah De Rapelje in the archives of the New-York Historical Society contains the names of the persons to whom eleven of her children were married, and tells the places where they settled. The twelfth, Brechje Hanse went to Holland.

March 1, 1665, Hendrick Lubbertson and John Evertsen, appeared as deputies from the town of Brooklyn, at the Assembly convened at Hempstead, by order of Richard Nicolls, Deputy Governor under the Duke of York; at which assembly the code of laws called the "Duke's laws" were adopted and published. In the appendix marked E. will be found the address which these deputies, together with the others, sent to the Duke of York; and which occasioned so much excitement in the Colony at that period.

1671, This town, with five other towns in the West Riding of Yorkshire upon Long-Island, petitioned the Court of Sessions "for liberty to transport wheate," which petition was referred to the Governor.

1687. The Clerk's office of Kings County was kept in this town, by the Deputy Register, Jacob Vandewater, who was also a Notary Public in this town at the same period. The Register, Samuel Bayard, Esq. resided in the city of New-York.

About the year 1691, there was a custom prevalent in this town of calling a widow the "last wife" of her deceased husband; and a widower the "last man" of his deceased wife.

The following is an Inventory of the estate which a bride in this town brought with her to her husband in the year 1691. The husband by various records appears to have been a man of considerable wealth; notwithstanding

which, the following inventory was thought by both of them, of sufficient importance to merit being recorded, viz.

“A half worn bed, pillow, 2 cushions of ticking with feathers, one rug, 4 sheets, 4 cushion covers, 2 iron potts, 3 pewter dishes, 1 pewter bason, 1 iron roaster, 1 schuryn spoon, 2 coves about five yeares old, 1 case or cupboard, 1 table.”

November 12, 1695, the Court of Sessions for Kings County, ordered that the Constable of this town, “shall on Sunday or Sabbathday take law for the apprehending of all Sabbath breakers,” and “search all ale houses, taverns and other suspected places for all prophaners and breakers of the Sabbath daye,” and bring them before a Justice of the Peace to be dealt with according to law. This was to be done by the Constable under the penalty of six shillings for each neglect or default.

The same Court also made an order, “that Mad James be kept by Kings County in general, and that the deacons of each towne within the said county doe forthwith meet together and consider about their propercons for maintainence of said James.” This is the first instance which has come to the compiler’s knowledge of the Court making an order for the county generally to support a pauper.

In the year 1758, the sum of £122 18s. 7d. was assessed in two assessments, by the Justices of the Peace, on this town, towards building “a new Court house and gaol” for Kings County. The whole amount assessed on the County was £448 4s. 1d.

The present Court house of Kings County, was built by contract in the year 1792, at an expense of \$2944, 71, under the superintendence of John Vanderbilt, Johannes E. Lott, and Charles Doughty, Esq’rs. The contractor was Thomas Fardon, and plans were furnished for the building by Messrs. Stanton and Newton, and James Robertson.^[27]

APPENDIX.

A.

Deed from William Morris and wife to the Corporation of New-York.

This Indenture made the twelfth day of October, in the sixth year of the reign of our Sovereign Lord and Lady William and Mary, by the grace of God, of England, Scotland, France, and Ireland, King and Queen, defenders of the faith, &c. and in the year of our Lord one thousand six hundred and ninety-four, between William Morris, now of the ferry, in the bounds of the town of Breuchlen, in Kings County, on Long-Island, Gentleman, and Rebecca his wife of the one part, and the Mayor, Aldermen and Commonalty of the City of New-York, of the other part, Witnesseth, that the said William Morris, by and with the consent of Rebecca his said wife, testified by her being a party to the sealing and delivery of these presents, for, and in consideration of a certain sum of good and lawful money to him, at and before the sealing and delivery hereof, by the said Mayor, Aldermen and Commonalty, in hand well and truly paid, the receipt whereof he the said William Morris doth hereby acknowledge, and thereof and therefrom and of and from all and every part thereof, he doth hereby acquit, exonerate and discharge the said Mayor, Aldermen and Commonalty, and their successors forever, hath granted, bargained, sold, assigned, conveyed and confirmed, and by these presents doth grant, bargain, sell, assign, convey and confirm unto the said Mayor, Aldermen and Commonalty of the said city of New-York, and their successors forever, All that messuage or dwelling house and lot of ground thereunto adjoining and belonging, with the appurtenances, situate, lying and being at the ferry, in the bounds of the town of Breucklen, in Kings County aforesaid, now and late in the possession of him, the said William Morris; as also one small house, now in the possession of one Thomas Hock, lying in the said City of New-York, over against the ferry aforesaid, Together with all and singular houses, barns, stables, yards, backsides, wharfs, easements, benefits, emoluments, hereditaments, and appurtenances to the same messuage or dwelling house and premises belonging, or in any wise appertaining, and the reversion and reversions, remainder and remainders, rents, issues, and profits of all and singular the premisses and the appurtenances, and all the estate, right, title

interest, property, possession, claim and demand of him the said William Morris and Rebecca his said wife, of, in, unto or out of the said messuage or dwelling house and premises, or, of, in, unto, or out of, all or any part or parcel thereof, and all and singular grants, deeds, escripts, minuments, writings and evidences, touching, relating to or concerning the above-mentioned, to be bargained, messuage or dwelling house and all and singular, the premises with the hereditaments and appurtenances to the same belonging, or any part thereof, unto the said Mayor, Aldermen and Commonalty of the City of New-York, aforesaid, and their successors unto the only proper use, benefit and behoof of the said Mayor, Aldermen and Commonalty of the City of New-York aforesaid, their successors and assigns forever. In witness, &c.^[28]

A Warrant for enforcing the payment of a town tax in the town of Brooklyn.

Whereas there was an order or towne lawe by the ffreeholders of the towne of Brooklyn, in Kings County aforesaid, the 5th day of May, 1701, ffor constituting and appointing of Trustees to defend the rights of their quondam common wood lands, and to raise a tax ffor the same to defray the charge of that and theire towne debts, &c. which said lawe has bin since ffurther confirmed by said ffreeholders at a towne meeting at Bedford, the 11th of Aprill, 1702, and since approved of and confirmed by a Court of Sessions, held at Fflatbush, in said County the 13th day of May, 1702. And whereas by virtue of said lawe, a certaine small tax was raised on the ffreeholders in said towne proportionably to defray the charges aforesaid: And now upon complaint of the said Trustees to us made, that A. B. has refused to pay his juste and due proporcon of said tax wch amounts to L1 16s 0d, current money of New-York. These are therefore in her Majesty's name, to command you to summons A. B. personally to be and appeare before us, &c., then and there to answer C. D. E. F. Trustees of said towne of Brooklin, in an action of tresspass on the case, to the damage of the said C. D. E. F. L1 16s 0d, current money as aforesaid, as it is said, and have with you then there this precept. Given, &c.

B.

Brookland, November 14th, 1753. A Town meeting called by warrant of Carel Debevois, Esq. and Jacobus Debevois, Esq. two of his Majesty's Justices for the township of Brookland, in the County of Kings, to elect and

chuse Trustees to defend our Patent of Brookland against the Commonalty of the City of New-York.—And the Trustees so elected and chosen by the freeholders and inhabitants of the township of Brookland aforesaid, are as follows: Jacobus Lefferts, Peter Vandervoort, Jacob Remsen, Rem Remsen, and Nicholas Vechte. And we the hereunder subscribers being freeholders and inhabitants of the township of Brookland, by these presents do fully empower and authorize the abovesaid Trustees, Jacobus Lefferts, Peter Vandervoort, Jacob Remsen, Rem Remsen, and Nicholas Vechte, elected and chosen by the freeholders and inhabitants of the township of Brookland aforesaid, to defend our patent where in any manner our liberties, privileges and rights in our patent specified is incroached, lessened or taken away by the Commonalty of the City of New-York. And that we hereunder subscribers of the township of Brookland, oblige ourselves, our heirs, executors and administrators to pay to the abovesaid Trustees, all cost that they are at in protecting of the profits of our patent, and that money shall be collected in by the constable of our town. And that the abovesaid Trustees do oblige themselves to render upon oath a true account of all such moneys they have expended in protecting or defending our patent, to any person or persons, as the hereunder subscribers shall appoint for that purpose. And in defending our patent so that verdict shall come in our favour, where income of money or other profits should arise concerning the premises, all such profits or income should be kept towards defraying of all the necessary cost and charge of our township of Brookland, till such time as it is altered by the majority. And that the Trustees should have three shillings per day for their service and no more.

C.

The Petition of Volkert Brier.

TO HIS EXCELLENCY.—The humble peticon of Volkert Brier, inhabitant of the towne of Broockland, on the Island of Nassau.

May it please your Excellency your peticoner being fined five pounds last Court of Sessions, in Kings County for tearing an execucon directed to him as Constable. Your peticoner being ignorant of the crime, and not thinking it was of force when he was out of his office, or that he should have made returne of it as the lawe directs, he being an illiterate man could not read said execucon nor understand any thing of lawe: humbly prays yr Excellency yt you would be pleased to remit said fine of five pounds, yr

peticoner being a poore man and not capaciated to pay said fine without great damage to himself and family. And for yr Excellecy yr peticoner will ever pray, &c.

D.

A Letter from Justice Ffilkin to the Secretary at New-York.

SIR,—I am in expectation of a complaint coming to his Excellency by Coll. Beeckman against me, and that his Excellency may be rightly informed of the matter, my humble request to you is, that if such a thing happen, be pleased to give his Excellency an account thereof, which is as follows: A Ffriday night last, the Justices of the County and I came from his Excellency's; Coll. Beeckman happened to come over in the fferry boat along with us, and as we came over the fferry, Coll. Beeckman and we went into the fferry house to drink a glass of wine, and being soe in company, there happened a dispute between Coll. Beeckman and myself, about his particular order that he lately made to Mr. Ffreeman, when he was President of the Councill, without the consent of the Councill; Coll. Beeckman stood to affirm there, before most of the Justices of Kings County, that said order, that he made then to Mr. Ffreeman as President only, was still in fforce, and that Mr. Ffreeman should preach at Broockland next Sunday according to that order; whereupon I said it was not in fforce, but void and of noe effect, and he had not in this County, any more power now than I have, being equall in commission with him in the general commission of the peace and one of the quorum as well as he; upon which he gave me affronting words, giving me the lie and calling me pittifull fellow, dog, rogue, rascall, &c. which caused me, being overcome with passion, to tell him that I had a good mind to knock him off his horse, we being both at that time getting upon our horses to goe home, but that I would not goe, I would fight him at any time with a sword. I could wish that these last words had bin kept in, and I am troubled that I was soe overcome with passion and inflamed with wine. The works of these Dutch ministers is the occasion of all our quarrells.^[29] And this is the truth of the matter, there was no blows offered, nor noe more done. Mr. Ffreeman has preached at Broockland yesterday accordingly, and the church doore was broke open, by whom it is not yet knowne. Soe I beg your pardon ffor this trouble, crave your favour in this matter, and shall alwayes remaine.

Sir, your ffaithful and humble servant,
H. FFILKIN.

[E]

The Address of the Deputies, assembled at Hempstead.

We the deputies duly elected from the several towns upon Long-Island, being assembled at Hempstead, in general meeting, by authority derived from your royal highness unto the honorable Colonel Nicolls, as deputy governor, do most humbly and thankfully acknowledge to your royal highness, the great honor and satisfaction we receive in our dependence upon your royal highness according to the tenor of his sacred majesty's patent, granted the 12th day of March, 1664; wherein we acknowledge ourselves, our heirs and successors forever, to be comprized to all intents and purposes, as therein is more at large expressed. And we do publickly and unanimously declare our cheerful submission to all such laws, statutes and ordinances, which are or shall be made by virtue of authority from your royal highness, your heirs and successors forever: As also, that we will maintain, uphold, and defend, to the utmost of our power, and peril of us, our heirs and successors forever, all the rights, title, and interest, granted by his sacred majesty to your royal highness, against all pretensions or invasions, foreign or domestic; we being already well assured, that, in so doing, we perform our duty of allegiance to his majesty, as freeborn subjects of the kingdom of England inhabiting in these his majesty's dominions. We do farther beseech your royal highness to accept of this address, as the first fruits in this general meeting, for a memorial and record against us, our heirs and successors, when we or any of them shall fail in our duties. Lastly we beseech your royal highness to take our poverties and necessities, in this wilderness country, into speedy consideration; that, by constant supplies of trade, and your royal highnesses more particular countenance of grace to us, and protection of us, we may daily more and more be encouraged to bestow our labors to the improvement of these his majesty's western dominions, under your royal highness; for whose health, long life, and eternal happiness, we shall ever pray, as in duty bound.

List of the Deputies.

New-Utrecht	Jaques Cortelleau	Younger Hope
Gravesend	James Hubbard	John Bowne

Flatlands	Elbert Elbertsen	Roeloffe Martense
Flatbush	John Striker	Hendrick Gucksen
Bushwick	John Stealman	Gisbert Tunis
Brooklyn	Hendrick Lubbertsen	John Evertsen
Newtown	Richard Betts	John Coe
Flushing	Elias Doughty	Richard Cornhill
Jamaica	Daniel Denton	Thomas Benedict
Hempstead	John Hicks	Robert Jackson
Oysterbay	John Underhill	Matthias Harvey
Huntington	Jonas Wood	John Ketcham
Brookhaven	Daniel Lane	Roger Barton
Southold	William Wells	John Youngs
Southampton	Thomas Topping	John Howell
Easthampton	Thomas Baker	John Stratton
Westchester	Edward Jessup	—— Quinby

The people of Long-Island considered the language of this address as too servile for freemen; and were exasperated against the makers of it to such a degree that the court of assizes, in order to save the deputies from abuse, if not from personal violence, thought it expedient, at their meeting in October 1666, to declare that “whosoever hereafter shall any wayes detract or speake against any of the deputies signing the address to his royall highnes, at the general meeting at Hempstead, they shall bee presented to the next court of sessions, and if the justices shall see cause, they shall from thence bee bound over, to the assizes, there to answer for the slander upon plaint or information.”

The deputies subsequently to the address made to the duke of York, made one to the people, in which they set forth their reasons for agreeing to the code styled the duke’s laws.

APPENDIX, No. 2.

The following is a copy of the first charter by which the corporation obtained any color of title to the land between high and low water mark, on the Brooklyn side.

“Anne, by the grace of God, of England, Scotland, France and Ireland, Queen, defender of the Faith, &c. To all whom these presents may in any wise concern, sendeth greeting. Whereas the mayor, aldermen, and commonalty of the city of New-York, by their petition to our trusty and well-beloved cousin Edward, Viscount Cornbury,^[30] our captain general and governor in chief in and over our province of New-York, and territories depending thereon in America, and Vice Admiral of the same, &c. preferred in council; therein setting forth, that they having a right and interest, under divers antient charters and grants, by divers former governors and commanders in chief of our said province of New-York,^[31] under our noble progenitors, in a certain ferry from the said city of New-York, over the East River, to Nassau Island, (alias Long-Island) and from the said Island to the said city again, and have possessed the same, and received all the profits benefits and advantages thereof for the space of fifty years and upwards; and perceiving the profits, advantages, and benefits usually issuing out of the same, to diminish, decrease, and fall short of what might be reasonably made of the same, for the want of the bounds and limits to be extended and enlarged on the said Island side, whereby to prevent divers persons transporting themselves and goods to and from the said Island Nassau (alias Long Island) over the said river, without coming or landing at the usual and accustomed places, where the ferry boats are usually kept and appointed, to the great loss and damage of the said city of New-York; have humbly prayed our grant and confirmation, under the great seal of our said province of New-York, of the said ferry, called the Old Ferry, on both sides of the said East River, for the transporting of passengers, goods, horses and cattle, to and from the said city, as the same is now held and enjoyed by the said mayor, aldermen and commonalty of the said city of New-York, or their under tenant, or under tenants; and also of all that vacant and unappropriated land, from high water mark to low water mark, on the said Nassau Island, (alias Long Island) lying contiguous and fronting the said city of New York, from a certain place called the Wall-about, unto the Red

Hook, over against Nutten Island, for the better improvement and accommodation of the said ferry; with full power, leave and license to set up, establish, maintain, and keep one or more ferry, or ferries, for the ease and accommodation of all passengers and travellers, for the transportation of themselves, goods, horses and cattle, over the said river, within the bounds aforesaid, as they shall see meet and convenient, and occasion require; and to establish, ordain and make, bye laws, orders, and ordinances for the due and orderly regulation of the same: The which petition we being minded to grant, Know Ye, That of our especial grace, certain knowledge and meer motion, we have given, granted, ratified and confirmed, and in and by these presents, for us, our heirs and successors, we do give, grant, ratify and confirm, unto the said mayor, aldermen and commonalty of the city of New-York, and to their successors and assigns, all that the said ferry, called the Old Ferry, on both sides of the said East River, for the transportation of passengers, goods, horses and cattle, over the said river, to and from the said city and island, as the same is now used, held and enjoyed, by the said mayor, aldermen and commonalty of the city of New-York, or their under tenant or under tenants, with all and singular the usual and accustomed ferriage, fees, perquisites, rents, issues, profits, and other benefits and advantages whatsoever, to the said Old Ferry belonging, or therewith used, or thereout arising; and also all that the aforesaid vacant and unappropriated ground, lying and being on the said Nassau Island, (alias Long-Island) from high water mark to low water mark aforesaid, contiguous and fronting the said city of New-York, from the aforesaid place called the Wallabout to Red Hook aforesaid; that is to say, from the east side of the Wallabout, opposite the now dwelling house of James Bobine, to the west side of the Red Hook, commonly called the Fishing-place, with all and singular the appurtenances and hereditaments to the same belonging, or in any wise of right appertaining; together with all and singular the rents, issues, profits, advantages, and appurtenances, which heretofore have, now are, & which hereafter shall belong to the said ferry, vacant land, and premises, herein before granted and confirmed, or to any or either of them, in any wise appertaining, or which heretofore have been, now are, and which hereafter shall belong, be used, held, received, and enjoyed; and all our estate, right, title and interest, benefit and advantage, claim and demand, of, in or to the said ferry, vacant land and premises, or any part or parcel thereof, & the reversion & reversions, remainder and remainders;

together with the yearly, and other rents, revenues and profits of the premises, and of every part and parcel thereof, except and always reserved out of this our present grant and confirmation, free liberty, leave and license to and for all and every person or persons, inhabiting or having plantations near the said river, by the water side, within the limits and bounds above mentioned, to transport themselves, goods, horses, and cattle, over the said river, to and from the said city of New-York, and Nassau Island, (alias Long-Island) to and from their respective dwellings or plantations, without any ferriage, or other account to the said ferry, hereby granted and confirmed, to be paid or given; so always as the said person or persons do transport themselves only, and their own goods, in their own boats only, and not any stranger or their goods, horses or cattle, or in any other boat. To have and to hold, all and singular the said ferry, vacant land and premises, herein before granted and confirmed, or meant, mentioned, or intended to be hereby granted and confirmed (except as is herein before excepted) and all and singular the rents, issues, profits, rights, members and appurtenances, to the same belonging, or in any wise of right appertaining, unto the said mayor, aldermen and commonalty of the city of New-York, and their successors and assigns forever; to the only proper use and behoof of the said mayor, aldermen, and commonalty of the city of New-York, and their successors and assigns forever; to be holden of us, our heirs and successors, in free and common soccage, as of our manour of East-Greenwich, in the county of Kent, within our kingdom of England; yielding, rendering, and paying unto us, our heirs and successors, for the same, yearly, at our custom-house of New-York, to our collector and receiver general there for the time being, at or upon the feast of the nativity of St John the Baptist, the yearly rent or sum of five shillings, current money of New-York. And we do further, of our especial grace, certain knowledge and meer motion, for us, our heirs and successors, give and grant unto the said mayor, aldermen and commonalty, and their successors, full and free leave and license to set up, establish, keep, and maintain one or more ferry or ferries, as they shall from time to time think fit and convenient, within the limits and bounds aforesaid, for the ease and accommodation of transporting of passengers, goods, horses and cattle, between the said city of New-York and the said Island (except as is herein before excepted) under such reasonable rates and payments as have been usually paid and received for the same; or which at any time hereafter, shall

be by them established, by and with the consent and approbation of our governor and council of our said province, for the time being^[32] And we do further, of our especial grace, certain knowledge, and meer motion, give, and grant unto the said mayor, aldermen, and commonalty of the city of New-York, and their successors, full and absolute power and authority, to make, ordain, establish, constitute and confirm, all manner of by-laws, orders, rules, ordinances and directions, for the more orderly keeping, and regularly maintaining the aforesaid ferry that now is kept, or any ferry or ferries which shall at any time or times hereafter, be set up, established, or kept within the bounds aforesaid, by virtue hereof, or of, for, touching or concerning the same, (so always as the same be not contrary to our laws of England, and of our province of New-York) and the same at all times hereafter to put in execution, or abrogate, revoke, or change, as they in their good discretion shall think fit, and most convenient, for the due and orderly keeping, regulating, and governing the said ferry or ferries herein before mentioned. And lastly, our will and pleasure is, and we do hereby declare and grant, that these our letters patent, or the record thereof, in the secretary's office of our said province of New-York, shall be good and effectual in the law, to all intents and purposes whatsoever, notwithstanding the not true and well reciting or mentioning of the premises, or any part thereof, or the limits and bounds thereof, or of any former or other letters patents, or grants whatsoever, made or granted; or of any part thereof, by us, or any of our progenitors, unto any person or persons whatsoever, bodies politic or corporate,^[33] or any law or other restraint, incertainty, or imperfection whatsoever, to the contrary in any wise notwithstanding, and although express mention of the true yearly value, or certainty of the premises, or of any of them, or of any other gifts or grants by us or by any of our progenitors, heretofore made to the said mayor, aldermen, and commonalty of the city of New-York, in these presents, is not made, or any other matter, cause, or thing whatsoever, to the contrary thereof in any wise notwithstanding. In testimony whereof, we have caused these our letters to be made patent, and the seal of our said province of New-York, to our said letters patent to be affixed, and the same to be recorded, in the secretary's office of our said province.—Witness our right trusty and well-beloved cousin, Edward Viscount Cornbury, captain general and governor in chief in and over our province of New-York aforesaid, and territories thereon depending in America, and vice admiral of the same, &c. in council, at our

Fort, in New-York, the nineteenth day of April, in the seventh year of our reign, Annoq. Domini one thousand seven hundred and eight.

CORNBURY.”

At the time of printing that part of this work under the head of “Common lands and the division thereof,” the compiler was not aware of the existence of the following proceeding relating to the division of the said lands, he has therefore placed the same in this appendix.

“At a towne meeting held this twentieth day of Aprill, 1697, at Bedford within the jurisdiction of Broockland, in Kings County, upon the Island of Nassau, Resolved by all the ffreeholders of the towne of Broockland aforesaid, that all their common land not yet laid out or divided, belonging to their whole patent shall be equally divided and laid out to each ffreeholders of said towne, his just proporcon in all the common lands abovesaid, except those that have but an house and a home lott, which are only to have but half share of the lands aforesaid. And for the laying out of the said lands there are chosen and appointed by the ffreeholders abovesaid, Capt. Henry Ffilkin, Jacobus Vanderwater, Daniel Rapale, Joris Hansen, John Dorlant, and Cornelius Vanduyne. It is further ordered that noe men within this township abovesaid, shall have priviledge to sell his part of the undivided lands of Broockland not yet laid out, to any person living without the township abovesaid. It is likewise ordered, consented to, and agreed by the towne meeting aforesaid, that Capt. Henry Ffilkin shall have a full share with any or all the ffreeholders aforesaid, in all the common land or woods in the whole patent of the towne of Broockland aforesaid, besides a half share for his home lott; To have and to hold to him, his heirs and assigns forever. It is likewise ordered, that noe person whatsoever within the common woods of the jurisdicon of Broockland aforesaid, shall cutt or fall any oake or chesnut saplings for fire wood during the space of foure years from the date hereof upon any of the said common lands or woods within the jurisdicon of Broockland patent, upon the penalty of six shillings in money, for every waggon load of saplings abovesaid soe cutt, besides the forfeiture of the wood or timber soe cutt as abovesaid, the one half thereof to the informer, and the other half for the use of the poor of the towne of Broockland aforesaid.

By order of the towne meeting aforesaid,
and Justice Henry Ffilkin,

JACOBUS VANDEWATER, Towne Clerk.”

ADVERTISEMENT.

The Compiler here closes his notes, and has only to remark, that throughout the whole of this little work, he has been less solicitous about his reputation as an author, than a correct compiler. Studies of this nature are but ill calculated to admit of a luxuriance of diction or sentiment, and to these he has in no place aspired. His business was to collect authentic information concerning subjects at once obscure and interesting, and in what degree he has effected this object he leaves his readers to determine, feeling conscious himself, that however imperfectly he may have executed his design, his only aim was the public good.

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FOOTNOTES:

[1] The custom of changing the names of sons, or rather substituting the sur-names for the christian name, prevailed at this period; as in the above instance, the father's name was Barent Janse, and the son was called Jan Barentse.

[2] According to the New-York doctrine, this boundary of the town can only be correct when the tide is flood, for when the water is low, the town is bounded by property belonging to the Corporation of the City of New-York, and not by the River.

[3] This town enjoyed this privilege in common with the other towns on Long-Island, and their cattle which ran at large were marked with the letter N.

[4] At the annual town meeting, April, 1823, a committee was appointed to inquire if this town at present, had any, and if any, what right to the above-mentioned tract of meadow ground called Sellers neck; what progress this committee made in their investigation, the compiler is uninformed. This meadow called Seller's neck, the Compiler thinks was apportioned among the patentees and freeholders, and what leads him to this conclusion is, that on the 10th of May, 1695, John Damen, who was one of the patentees of this town, sold to William Huddleston all his interest in the said meadow.

[5] This “port or entrance,” as it is called, is situate in the valley on the Flatbush Turnpike, near the “Brush” or “Valley Tavern,” and a short distance beyond the 3 mile post from Brooklyn ferry.—A freestone monument has been placed here, to designate the patent line between Brooklyn and Flatbush.

[6] Although the bounds of this grant commences about 250 yards in the town of Bushwick, the Corporation of New-York have made no claim to land beyond the Wallabought.

[7] There was some peculiar circumstances attending the consummation of this charter, which the Compiler thinks ought to be known. A short time previous to obtaining the charter, the Common Council of the City of New-York resolved that the sum of L1400 was necessary for the procuring of that instrument; L1000 of which sum they determined to raise immediately by a loan on interest for one year; which they accordingly did, and gave a mortgage for that amount to James De Lancey, Esq. dated January 14, 1730. Directly after the execution of this mortgage they resolved to address the Governor, “for the great favour and goodness shewn to this Corporation in granting their petition, in ordering and directing his Majesty’s letters patent for a new charter and confirmation to this Corporation,” and probably informing him that they had obtained the money. The consequence was, that on the next day, January 15, 1730, the charter was completed; and on paying the L1000 was delivered to them on the 11th day of February, 1730, almost a month after its date. By which it appears that the Corporation of New-York still continued purchasing the right of the town of Brooklyn from the Colonial Governors. See List of Corporation Charters and grants, 1747.

[8] The jurisdiction of New-York by their first charter in 1686, was limited to low water mark around Manhattan Island; but was extended to low water mark on the Brooklyn side by Governor Montgomery’s charter in 1730.

[9] For what purpose was it, that the Corporation’s Counsel was heard at the bar of the House, if not to advance and support their rights? If it was not done at that time, the plain inference would be, that they were aware they had no right.

[10] The Council was appointed by the King’s mandamus and sign manual, and all their privileges and powers were contained in the Governor’s instructions. The tenure of their places was extremely precarious. See Smith’s History of New-York, p. 364.

[11] The Corporation of New-York, during the year 1824, have received from the ferries, the sum of D12,003 75,—more than 3-4ths of which sum is from the ferries on the East River.

[12] The idea intended to be conveyed by this regulation, I understand to be, that the Justices of the town of Brooklyn shall have cognizance of the offence, as much as if the offenders resided within the town.

[13] The records referred to, together with all our other town records were destroyed during the Revolution.

[14] The fortifications at Red Hook were erected by a Regiment of Continental troops, the night of April 8, 1776.

[15] In 1655, a large body of Northern Indians made a descent on Staten Island, and massacred 67 persons; after which they crossed to Long-Island, and invested Gravesend; which place was relieved by a party of soldiers from New-Amsterdam. It appears from the records that these Indians were on their way to commence a war against the Indians on the east end of Long-Island.

The inhabitants of Flatbush were ordered by Governor Stuyvesant, in 1656, to enclose their village with palisadoes to protect them from the Indians. These fortifications were required to be kept under the English government, as will appear by the following record of the Court of Sessions for the West Riding of Yorkshire upon Long-Island, December 15th, 1675. “The

towne of Flatbush having neglected the making of fortifications, the Court take notice of it, and reffer the censure to ye Governor.”

[16] There were also a “Clerk” in most if not in all of these towns, who seems to have been authorised to take proof of the execution of wills; whether he was the Town Clerk does not appear. This officer was differently appointed in the different towns. In Bushwick he was appointed by the Commissioners of the town, and in New-Utrecht he was elected by the people, and approved of by the Governor.

[17] This law provides, that any person not having a visible estate, or a manual craft or occupation, coming into any place within this province, should give security, not to become chargeable within two years: and the captains of vessels bringing passengers into this province, were required to report them to the chief magistrate of the place, within 24 hours after their arrival. Under the Dutch government the poor were supported out of the fines imposed for offences committed, and by contributions taken up in the Churches.

[18] Sept. 14, 1696, about 8 o’clock in the evening, John Rapale, Isaac Remsen, Joras Yannester, Joras Danielse Rapale, Jacob Reyersen, Aert Aersen, Tunis Buys, Garret Cowenhoven, Gabriel Sprong, Urian Andriese, John Williamse Bennet, Jacob Bennet, and John Meserole, jr. met armed at the court-house of Kings, where they destroyed and defaced the king’s arms which were hanging up there.

[19] The West Riding was composed of the towns of Brooklyn, Bushwick, Flatbush, Flatlands, New-Utrecht, and Gravesend, together with Staten-Island and Newtown.

[20] At the same period, the salary of the clerk of the county was £10. per annum.

[21] This minister died in the month of June, 1676.

[22] This minister was naturalized in the Court of Sessions for Kings County, November 8, 1715.

[23] This office was held by George S. Wise, Jun, Esq. until his death in November, 1824.

[24] Governor Nicolls in a letter to the Duke of York, November, 1665, informed him “that such is the mean condition of this town, (New-York) that not one soldier to this day has lain in sheets, or upon any other bed than canvass and straw.

1678, New-York contained 343 houses, and 3430 inhabitants; and there were owned in the City, three ships, eight sloops and seven boats.

1686. The City of New-York contained 594 houses, and 6000 inhabitants; and there were owned in it, 10 three masted vessels of between 80 and 100 tons; 3 ketches, or barques, of about 40 tons; and about 20 sloops, of 25 tons. In the same year, the militia of the colony consisted of 4000 foot, 300 horse, and one company of dragoons.

1696. There were owned in the city of New-York, 40 ships, 62 sloops, and 62 boats.

In 1697, the population of New-York has considerably decreased, from what it was in 1686; the census taken this year was as follows:

Whites—	Men,	946
	Women,	1018
	Young men, young men and boys,	864
	Young women and girls,	899
		— 3727
Blacks.—	Men,	209
	Women,	205

Boys and girls,	161	575
	<u>Total.</u>	<u>4302</u>

1731. The City of New-York contained

White males,	3771
White females,	3274 7045
Black males,	785
Black females,	792 1577
	<u>Total.</u>
	<u>3622</u>

1756. The City contained 10,881 inhabitants.

1771. It contained 21 863 inhabitants.

1786. It contained 3340 houses, and 23,614 inhabitants.

1790. It contained 33131 inhabitants.

1800. 60189

1810. 96373

1820. 139000

[25] The town is now erecting a very neat building for an Alms-house, on the property lately purchased from Leffert Lefferts, Esqr.

[26] The first settlement in this town was made by George Jansen De Rapalje, the father of Sarah in 1625, on the farm which is now owned by the family of the Schencks at the Wallaboght.

[27] In 1700 the Court House was let to James Simson for one year, at L3 “in money.” In this agreement, “the Justices reserved for themselves the Chamber in the said house, called the Court Chamber, at the time of their publique Sessions, Courts of Common Pleas, and private meetings; as also the room called the prison for the use of the Sheriff if he hath occasion for it.”

[28] The above deed to the Corporation of New-York did not extend to the River. January 15, 1717, Samuel Garritsen, of Gravesend, quitclaimed to David Aersen of Brooklyn, all his right and title to a piece of land, “lying next to the house and land belonging to the City of New-York, bounded north-west by the River, south-east by the highway that goes to the ferry, south-west by the house and land belonging to the City of New-York, and north-east by the house and land belonging to the said John Rapalje, containing one acre be the same more or less.” On the 16th day of the same month, David Aersen sold this property to Gerrit Harsum of New-York, Gunsmith, for the sum of L108 current money of New-York.

[29] The compiler congratulates his fellow citizens on the extinction of those national animosities which in former times existed between the Dutch and English in this our happy country. We may now truly ask with Sterne, “are we not all relations?”

[30] “Lord Cornbury came to this province in very indigent circumstances, hunted out of England by a host of hungry creditors, he was bent on getting as much money as he could squeeze out of the purses of an impoverished people.” He was infamous for his “excessive avarice his embezzlement of the public money, and his sordid refusal to pay his private debts.” Cornbury became so obnoxious to the inhabitants of this province, that they sent a complaint to England against him. The Queen in consequence of this complaint displaced him. “As soon as his lordship was superseded, his creditors threw him into the custody of the sheriff of New-

York.” See Smith’s History of New-York. Such was the man from whom the corporation of New-York obtained the rights of the town of Brooklyn.

[31] These “divers former governors,” &c. are limited to two, viz. Nicolls, who in 1665 granted them a charter, if that may be strictly called so, which only altered their form of government from scout, burgomasters, and schepens, to mayor and aldermen, without a word about ferries or water rights, or indeed any other matter—the original of which paper is not in existence. There is nothing to warrant a belief that there was a charter of any kind granted to the corporation between Nicolls and Dongan, who is the second of these “divers former governors,” &c. and who in 1686 granted them the ferry, (as is mentioned in a former part of this work) with an express reservation as to the rights of all others. The charter of Dongan, notwithstanding all their pompous recitals, is the oldest they can produce, which in any manner affects the interests of this town.

[32] The corporation of New-York appear to have abandoned the right of regulating the rate of ferriage very early; for in 1717, nine years after the date of this charter, an act was passed by the colonial legislature for that purpose.

[33] This clause was undoubtedly inserted to obviate, if possible the claim under the two Brooklyn patents, both of which were many years older than this charter.

*** END OF THE PROJECT GUTENBERG EBOOK NOTES
GEOGRAPHICAL AND HISTORICAL, RELATING TO THE TOWN OF
BROOKLYN IN KINGS COUNTY ON LONG-ISLAND ***

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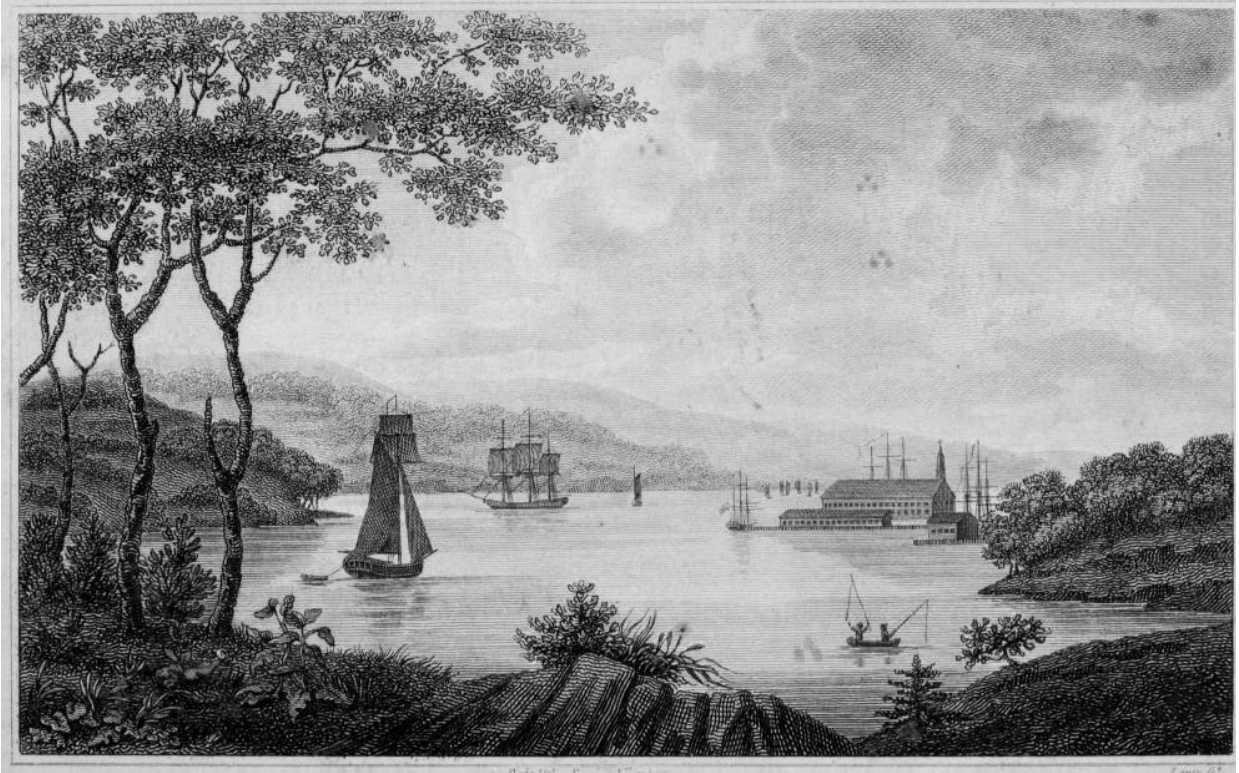
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